4 – European regulation on machinery (part 2)

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4 – European regulation on machinery (2)

- Procedures for assessing the conformity of machinery
- Essential health and safety requirements
- Technical documentation for machinery
- CE conformity marking
- EU Declaration of conformity
- EU Declaration of incorporation for partly completed machinery

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Conformity Assessment Procedures

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What is conformity assessment?

- Conformity assessment is the **process carried out by the manufacturer** of **demonstrating whether specified requirements relating to a product have been fulfilled**.
- A product is subjected to conformity assessment both during the **design and production phase**.
- Two important elements of every legislative act covering products are:
  - the **legislative requirements** governing the characteristics of the products covered;
  - and the **conformity assessment procedures** the manufacturer carries out in order to demonstrate that a product, before it is placed on the market, conforms to these legislative requirements

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What is conformity assessment?

- Not only for machinery regulation
- New and total approach for products within the EU market

- Conformity assessment must not be confused with market surveillance, which consists of controls by the national market surveillance authorities after the product has been placed on the market. However both techniques are complementary and equally necessary to ensure the protection of the public interests at stake and the smooth functioning of the internal market.

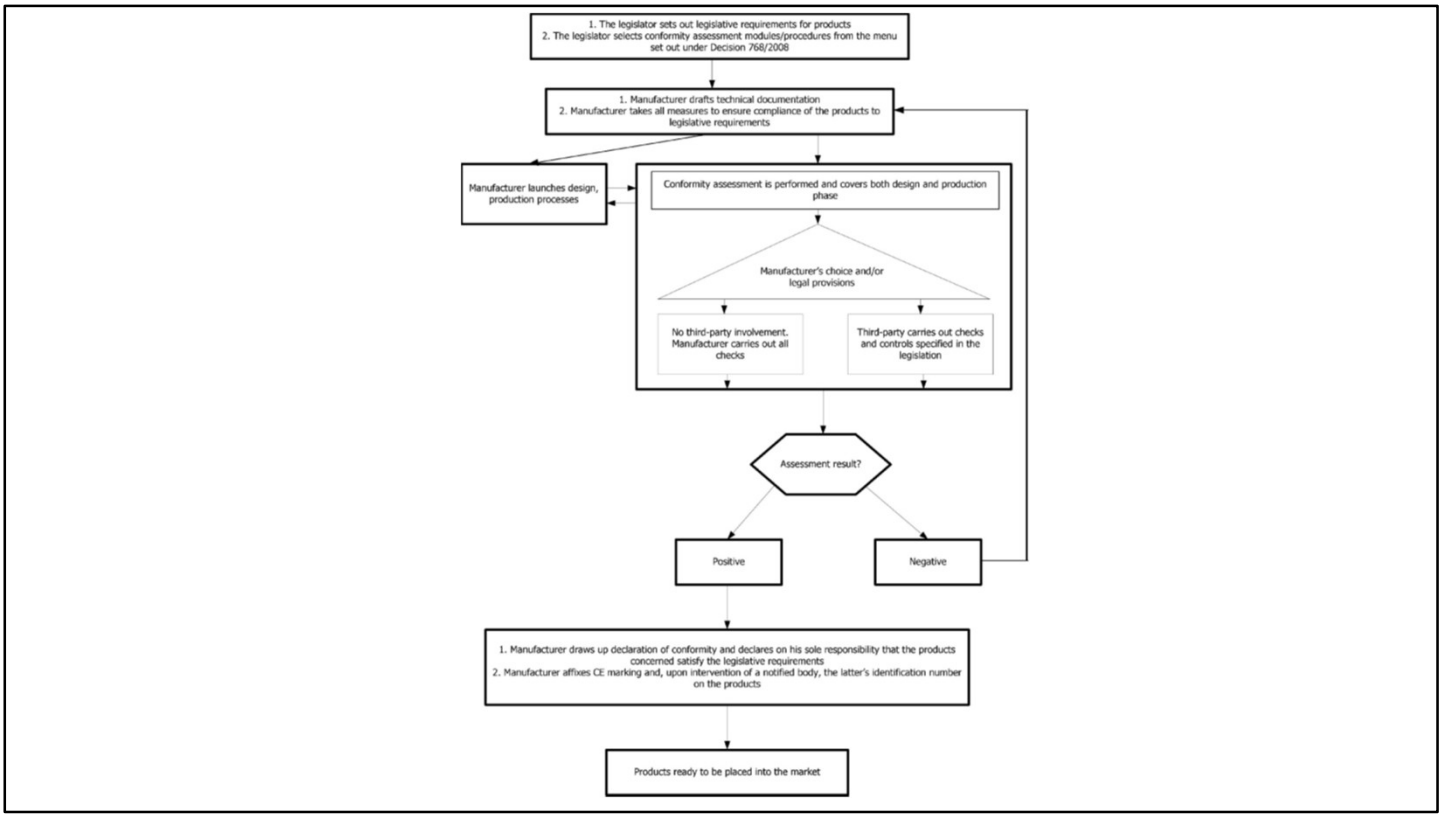
- The essential objective of a conformity assessment procedure is to demonstrate that products placed on the market conform to the requirements expressed in the provisions of the relevant legislation.

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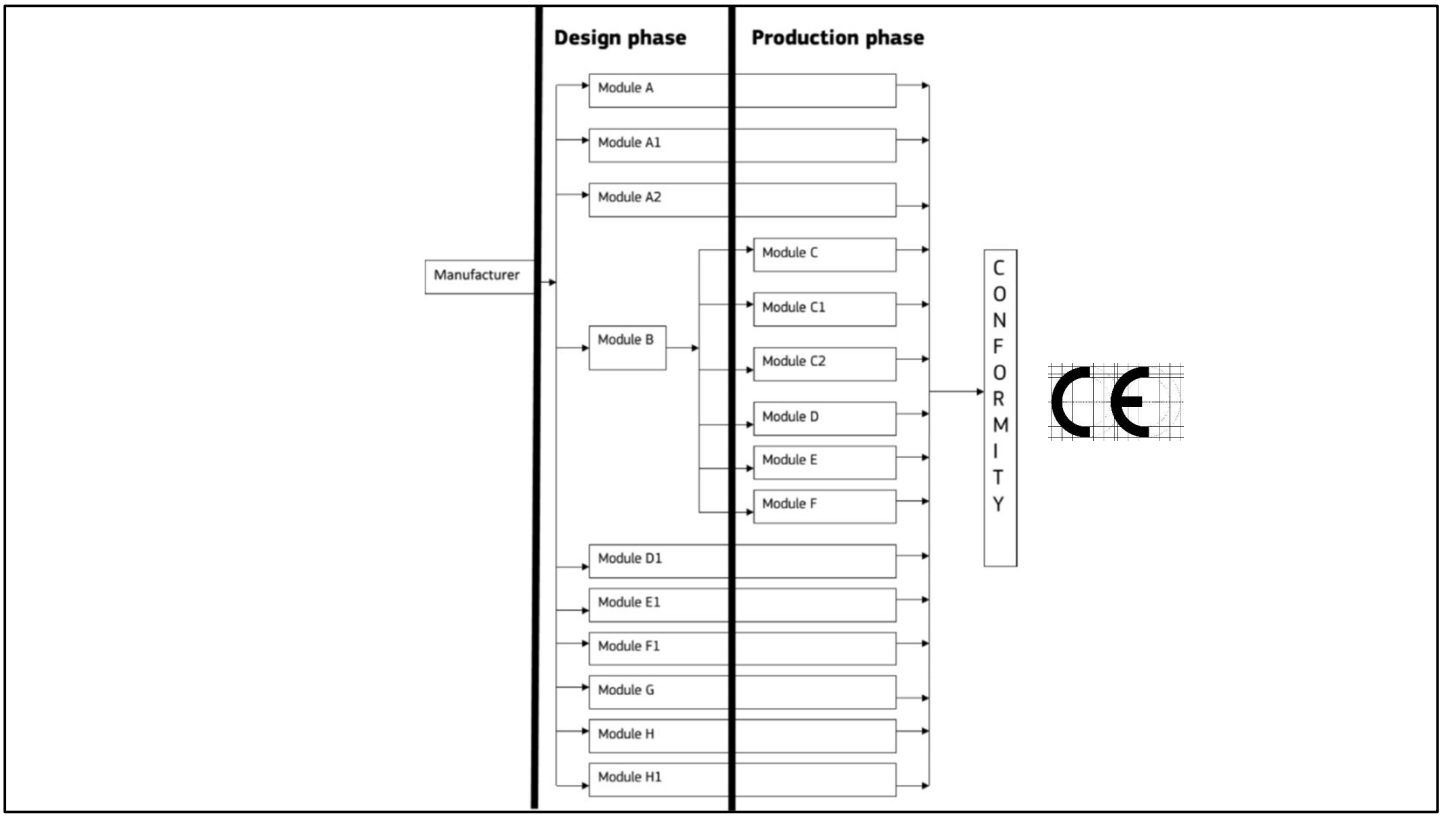
Modular structure of conformity assessment

- In Union harmonisation legislation, **conformity assessment procedures cover both design and production phases**. They are composed of **one or two modules**. Some modules cover both phases. In other cases, distinct modules are used for each phase.
- Decision No 768/2008/EC lays down the ‘horizontal menu’ of conformity assessment modules and the ways procedures are built of modules.
- The legislator selects from the menu of conformity assessment modules/procedures (laid down under Decision No 768/2008/ EC) the most appropriate ones for the concerned sector.
- Basically 8 modules...

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Conformity assessment procedures

- **Module A** = **Internal production control**

  Covers both design and production.

  The manufacturer himself ensures the conformity of the products to the legislative requirements (no EU-type examination).

  ➔ *selfassessment = + 90% of all products*

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Conformity assessment procedures

- **Module B = EU-type examination**

  Covers design.

  It is always followed by other modules by which the conformity of the products to the approved EU-type is demonstrated.

  A **notified body examines the technical design** and or the specimen of a type and verifies and attests that it meets the requirements of the legislative instrument that apply to it by issuing an EU-type examination certificate. There are 3 ways to carry out EU-type examination: 1) production type, 2) combination of production type and design type and 3) design type.

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Conformity assessment procedures

- **Module C = Conformity to EU-type based on internal production control**

  Covers production and follows module B.

  Manufacturer must internally **control its production** in order to ensure product conformity against the EU-type approved under module B.

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Conformity assessment procedures

- **Module D = Conformity to EU-type based on quality assurance of the production process**

  Covers production and follows module B.

  The manufacturer operates a production (manufacturing part and inspection of final product) quality assurance system in order to ensure conformity to EU-type. The **notified body assesses the quality system**.

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Conformity assessment procedures

- **Module E = Conformity to EU-type based on product quality assurance**

  Covers production and follows module B.

  The manufacturer operates a product quality (=production quality without the manufacturing part) assurance system for final product inspection and testing in order to ensure conformity to EU-type. A **notified body assesses the quality system**.

  The idea behind module E is similar to the one under module D: both are based on a quality system and follow module B. Their difference is that the quality system under module E aims to ensure the quality of the final product, while the quality system under module D (and D1 too) aims to ensure the quality of the whole production process (that includes the manufacturing part and the test of final product). E is thus similar to module D without the provisions relating to the manufacturing process.

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Conformity assessment procedures

- **Module F = Conformity to EU-type based on product verification**

  Covers production and follows module B.

  The manufacturer ensures compliance of the manufactured products to approved EU-type. The **notified body carries out product examinations** (testing of every product or statistical checks) in order to control product conformity to EU-type.

  Module F is like C2 but the notified body carries out more systematic product checks.

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Conformity assessment procedures

- **Module G = Conformity based on unit verification**

  Covers both design and production.

  The manufacturer ensures compliance of the manufactured products to the legislative requirements. The **notified body verifies every individual product** in order to ensure conformity to legislative requirements (no EU-type).

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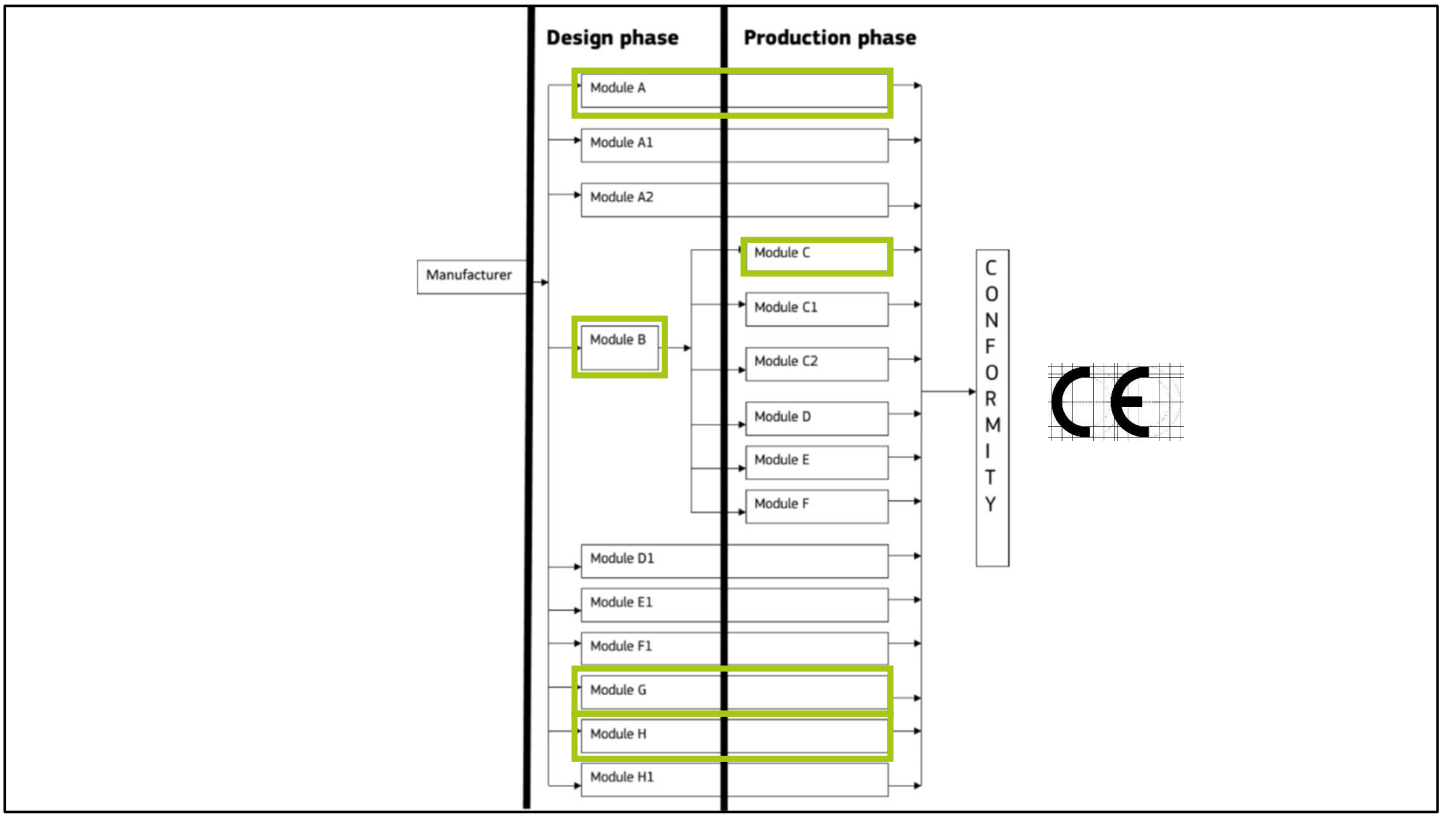
Conformity assessment procedures

- **Module H = Conformity based on full quality assurance**

  Covers both design and production.

  The manufacturer operates a full quality assurance system in order to ensure conformity to legislative requirements (no EU-type). **The notified body assesses the quality system**.

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Art. 25 Conformity assessment procedures

- 1. The **manufacturer or the natural or legal person** referred to in Article 18 **shall apply one of the conformity assessment procedures** referred to in paragraphs 2, 3 and 4.

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Art. 25 Conformity assessment procedures

- 2. Where the category of **machinery or related product is listed in Annex I, Part A**, the manufacturer or the natural or legal person referred to in Article 18 shall apply one of the following procedures:
  - (a) **EU type-examination (module B)** set out in **Annex VII**, followed by conformity to type based on **internal production control (module C)** set out in **Annex VIII**;
  - (b) conformity based on **full quality assurance (module H)** set out in **Annex IX**;
  - (c) conformity based on **unit verification (module G)** set out in **Annex X**.

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Art. 25 Conformity assessment procedures

- 3. Where the category of **machinery or related product is listed in Annex I, Part B**, the manufacturer or the natural or legal person referred to in Article 18 shall apply one of the following procedures:
  - (a) **internal production control (module A)** set out in **Annex VI**;
  - (b) **EU type-examination (module B)** set out in Annex VII, followed by conformity to type based on **internal production control (module C)** set out in Annex VIII;
  - (c) conformity based on **full quality assurance (module H)** set out in Annex IX;
  - (d) conformity based on **unit verification (module G)** set out in Annex X.

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Art. 25 Conformity assessment procedures

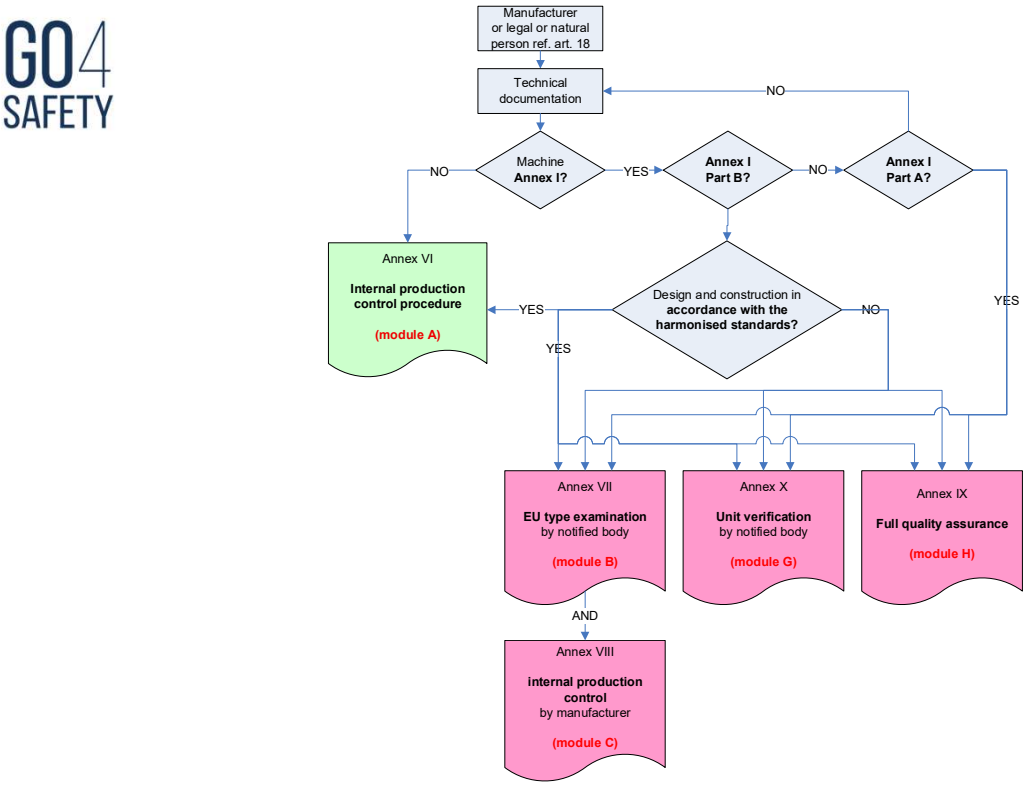
- If a manufacturer applies the internal production control procedure referred to in point (3) (a), it shall design and construct the machinery or related product in accordance with the harmonised standards or common specifications specific to that category of machinery or related product covering all the relevant essential health and safety requirements.
- Where the category of machinery or related product is listed in Annex I, Part B, and the machinery or related product was not designed and constructed in accordance with the harmonised standards or common specifications specific to that category of machinery or related product covering all the relevant essential health and safety requirements for that category of machinery or related product, the manufacturer, including a natural or legal person referred to in Article 18, shall apply one of the procedures referred to in points (3) (b), (c) or (d).

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Art. 25 Conformity assessment procedures

- 4. Where the category of machinery or related product is **not listed in Annex I**, the **manufacturer**, including a natural or legal person referred to in Article 18, **shall apply the internal production control procedure (module A) set out in Annex VI**.
- 5. Notified bodies shall take into account the specific interests and needs of small and medium sized enterprises when setting the fees for conformity assessment.

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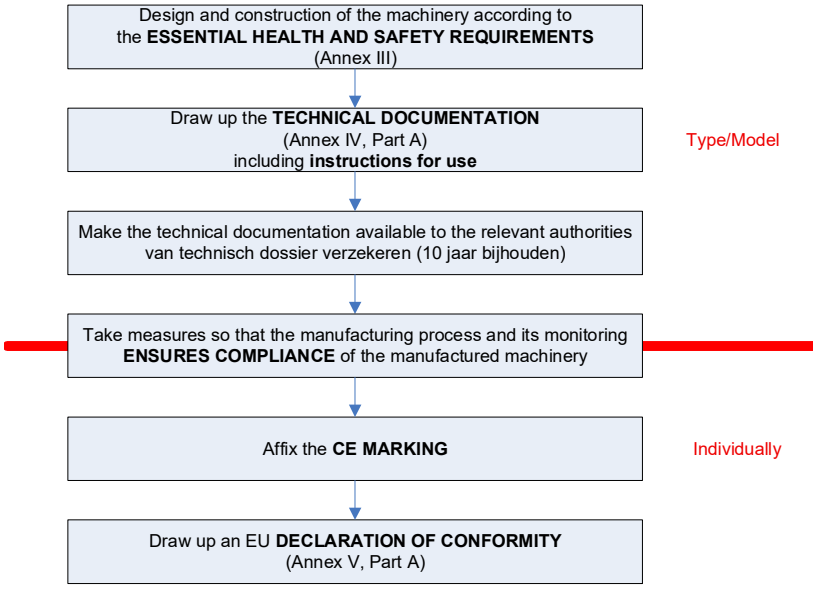
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Annex VI - Internal production control

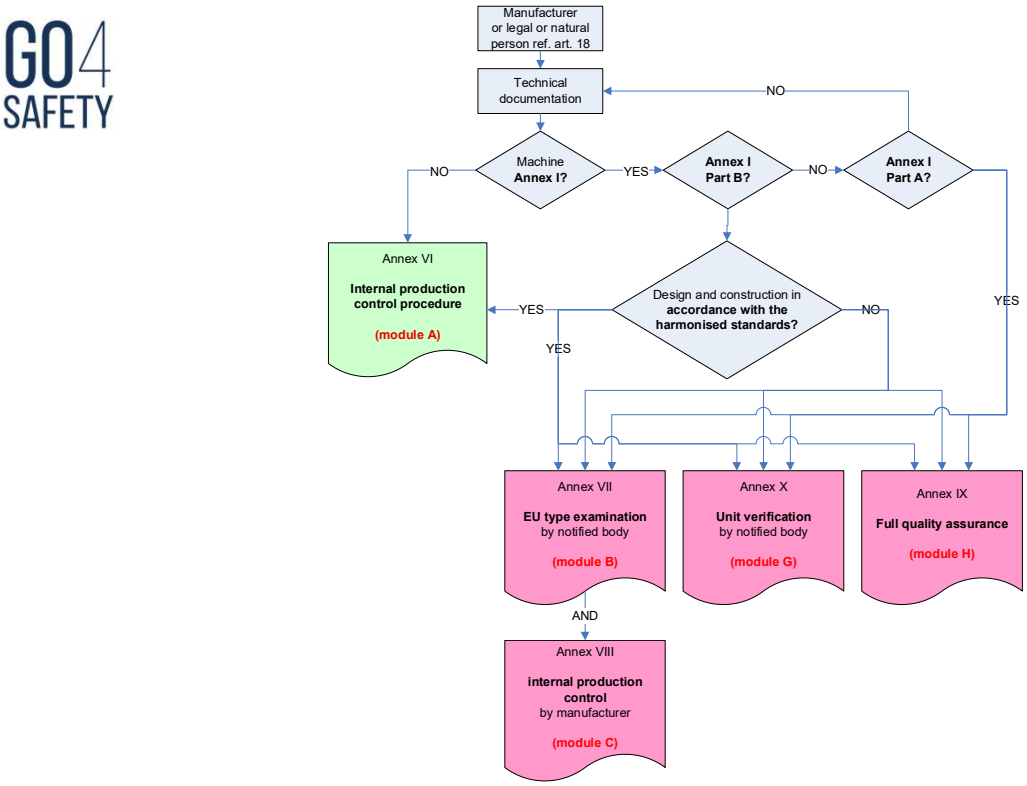
- Internal production control is the **conformity assessment procedure whereby the manufacturer fulfils the obligations** laid down in points 2, 3 and 4, and **ensures and declares on its sole responsibility** that the **machinery** or related product concerned **satisfies the applicable requirements** of this Regulation.
  - The manufacturer shall draw up the technical documentation described in Annex IV, Part A.
  - The manufacturer shall take all measures necessary so that **the manufacturing process and its monitoring ensure compliance of the manufactured machinery** or related products with the technical documentation referred to in point 2 and with the applicable requirements of this Regulation.
  - The manufacturer shall **affix the CE marking** to machinery or related products, **individually**, that satisfies the applicable requirements of this Regulation.
  - The manufacturer shall **draw up an EU declaration of conformity for each machinery** or related product model in accordance with Article 21 and keep it, together with the technical documentation, at the disposal of the national authorities for at least 10 years after the machinery or related product has been placed on the market or put into service. The EU declaration of conformity shall identify the machinery or related product model for which it has been drawn up.
  - CE marking and EU declaration of conformity may be fulfilled by its authorised representative, on its behalf and under its responsibility, provided that they are specified in the mandate.

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Annex VI - Internal production control



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Art. 6 Categories of machinery and ... listed in Annex I

- Machinery and related products that fall within the categories listed in Annex I, Part A, shall be subject to the specific conformity assessment procedures referred to in Article 25(2), and machinery and related products that fall within the categories listed in Annex I, Part B shall be subject to the specific conformity assessment procedures referred to in Article 25(3).

- Procedure to amend Annex I

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Annex I - Potentially dangerous machinery

- **PART A** - Categories of machinery or related products to which a procedure referred to in Article 25(2) shall be applied:
  - 1. Removable mechanical transmission devices including their guards.
  - 2. Guards for removable mechanical transmission devices.
  - 3. Vehicle servicing lifts.
  - 4. Portable cartridge-operated fixing and other impact machinery.
  - 5. Safety components with fully or partially self-evolving behaviour using machine learning approaches ensuring safety functions.
  - 6. Machinery that has embedded systems with fully or partially self-evolving behaviour using machine learning approaches ensuring safety functions that have not been placed independently on the market, in respect only of those systems.

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Annex I - Potentially dangerous machinery

- **PART B** - Categories of machinery or related products to which one of the procedures referred to in Article 25(3) shall be applied:
  - 1. Circular saws (single- or multi-blade) for working with wood and material with similar physical characteristics or for working with meat and material with similar physical characteristics, of the following types:
    - 1.1. sawing machinery with fixed blade(s) during cutting, having a fixed bed or support with manual feed of the workpiece or with a demountable power feed;
    - 1.2. sawing machinery with fixed blade(s) during cutting, having a manually operated reciprocating saw-bench or carriage;
    - 1.3. sawing machinery with fixed blade(s) during cutting, having a built-in mechanical feed device for the workpieces, with manual loading and/or unloading;
    - 1.4. sawing machinery with movable blade(s) during cutting, having mechanical movement of the blade, with manual loading and/or unloading.
  - 2. Hand-fed surface planing machinery for woodworking.

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Annex I - Potentially dangerous machinery

- **PART B** - Categories of machinery or related products to which one of the procedures referred to in Article 25(3) shall be applied:
  - 3. Thicknessers for one-side dressing having a built-in mechanical feed device, with manual loading and/or unloading for woodworking.
  - 4. Band-saws with manual loading and/or unloading for working with wood and material with similar physical characteristics or for working with meat and material with similar physical characteristics, of the following types
    - 4.1. sawing machinery with fixed blade(s) during cutting, having a fixed or reciprocating-movement bed or support for the workpiece;
    - 4.2. sawing machinery with blade(s) assembled on a carriage with reciprocating motion.
  - 5. Combined machinery of the types referred to in points 1 to 4 and in point 7 for working with wood and material with similar physical characteristics.
  - 6. Hand-fed tenoning machinery with several tool holders for woodworking.

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Annex I - Potentially dangerous machinery

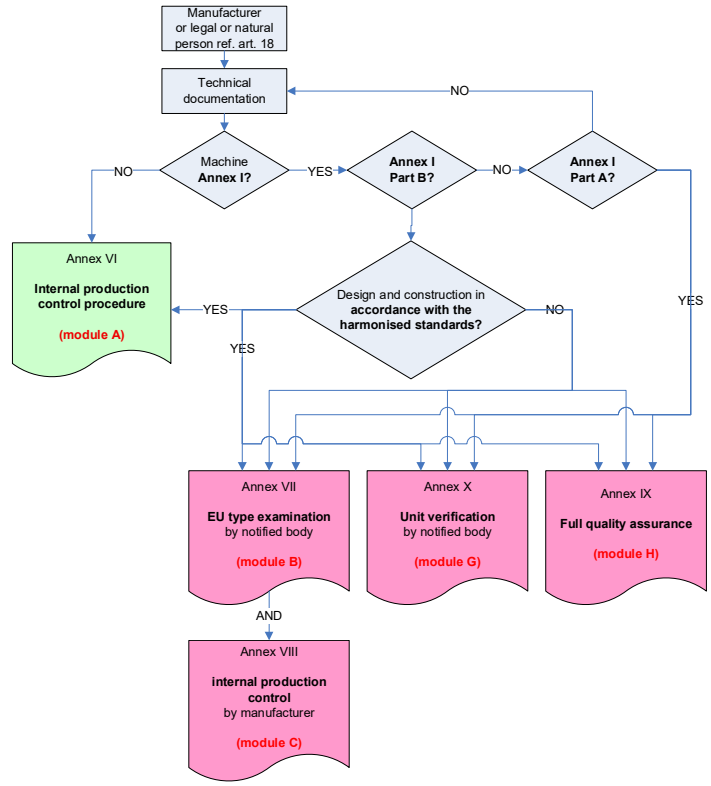
- **PART B** - Categories of machinery or related products to which one of the procedures referred to in Article 25(3) shall be applied:
  - 7. Hand-fed vertical spindle moulding machinery for working with wood and material with similar physical characteristics.
  - 8. Portable chainsaws for woodworking.
  - 9. Presses, including press-brakes, for the cold working of metals, with manual loading and/or unloading, whose movable working parts may have a travel exceeding 6 mm and a speed exceeding 30 mm/s.
  - 10. Injection or compression plastics-moulding machinery with manual loading or unloading.
  - 11. Injection or compression rubber-moulding machinery with manual loading or unloading.
  - 12. Machinery for underground working of the following types:
    - 12.1. locomotives and brake-vans;
    - 12.2. hydraulic-powered roof supports.

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Annex I - Potentially dangerous machinery

- **PART B** - Categories of machinery or related products to which one of the procedures referred to in Article 25(3) shall be applied:
  - 13. Manually loaded trucks for the collection of household refuse incorporating a compression mechanism.
  - 14. Devices for the lifting of persons or of persons and goods involving a hazard of falling from a vertical height of more than 3 m.
  - 15. Protective devices designed to detect the presence of persons.
  - 16. Power-operated interlocking movable guards designed to be used as safeguards in machinery referred to in points 9, 10 and 11 of this Part.
  - 17. Logic units to ensure safety functions.
  - 18. Roll-over protective structures (ROPS).
  - 19. Falling-object protective structures (FOPS).

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Annex VII - EU Type-Examination

- 1. EU type-examination is the **part of a conformity assessment procedure in which a notified body examines the technical design** of machinery or a related product and verifies and **attests that the technical design** of the machinery or related product **meets the applicable requirements** of this Regulation.

- 2. EU type-examination shall be carried out by assessment of the adequacy of the technical design of the machinery or related product
  - **through examination of the technical documentation**,
  - plus **examination of a specimen** of the machinery or related product that is representative of the production envisaged (production type).

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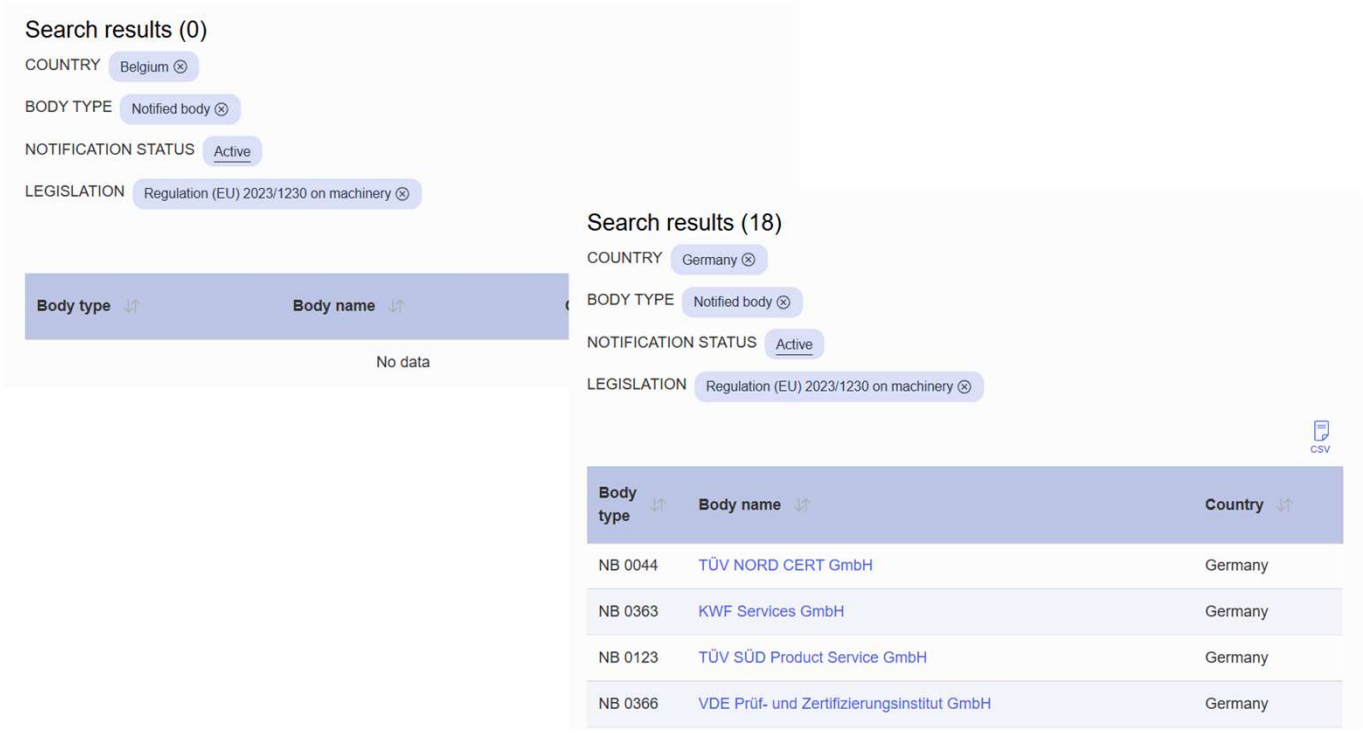
Notified bodies?

- NANDO
- New Approach Notified & Designated Organisations
- https://webgate.ec.europa.eu/single-market-compliance-space/notified-bodies

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Search results (2)

COUNTRY Belgium ⊗

BODY TYPE Notified body ⊗

NOTIFICATION STATUS Active

LEGISLATION 2006/42/EC Machinery ⊗

CSV

Body type	Body name	Country
NB 1179	SGS – Statutory Services Belgium vzw/asbl	Belgium
NB 0026	VINÇOTTE sa/nv	Belgium

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Organization details

BODY VERSION 15

Body Name	VINÇOTTE sa/nv
Address	Business Class Kantorenpark Jan Olieslagerslaan , 35 1800 Vilvoorde
Country	Belgium
Phone Fax	+32/2.674.57.11 +32/2.674.59.59
Email Website	info@vincotte.be www.vincotte.be
Body Number Body MIC Last approval date	0026 26/07/2022

List of notifications

NOTIFICATION STATUS Active

Body type	Legislation	End date	PDF
NB	Regulation (EU) No 305/2011 - Construction products		
NB	2013/53/EU Recreational craft and personal watercraft		
NB	2014/68/EU Pressure equipment		
NB	2000/14/EC Noise emission in the environment by equipment for use outdoors		
NB	2006/42/EC Machinery		
NB	2014/33/EU Lifts and safety components for lifts		

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Annex VII - EU Type-Examination

- 3. The **manufacturer** shall lodge **an application for EU type-examination with a single notified body** of its choice. The application shall include:
  - (a) the name and address of the manufacturer and, if the application is lodged by an authorised representative, the name and address of that authorised representative;
  - (b) a written declaration that the same application has not been lodged with any other notified body;
  - (c) the technical documentation described in Annex IV, Part A;
  - (d) the access to the specimen(s) of the machinery or related product representative of the production envisaged. The notified body may request further specimens if needed for carrying out the test programme. For machinery or related products produced in series where each item is adapted to fit an individual user, specimens shall be provided that are representative of the range of different users, while for machinery or related products produced as a single unit to accommodate the special needs of an individual user, a basic model shall be provided.

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Annex VII - EU Type-Examination

- 4. The **notified body** shall:
  - (a) examine the technical documentation to assess the adequacy of the technical design of the machinery or related product. In conducting such an examination, Annex IV, Part A, second subparagraph, points (h) and (l), need not be taken into account;
  - (b) for machinery or related products produced in series where each item is adapted to fit an individual user, examine the description of the measures to assess their adequacy;
  - (c) verify that the specimen(s) have been manufactured in conformity with the technical documentation, and identify the elements that have been designed in accordance with the applicable provisions of the relevant harmonised standards or common specifications adopted by the Commission in accordance with Article 20(3), as well as the elements that have been designed in accordance with other technical specifications;
  - (d) carry out appropriate examinations and tests, or have them carried out, to check whether, where the manufacturer has chosen to apply the solutions in the relevant harmonised standards, or common specifications adopted by the Commission in accordance with Article 20(3), those have been applied correctly;
  - (e) carry out appropriate examinations and tests, or have them carried out, to check whether, where the solutions in the relevant harmonised standards or common specifications adopted by the Commission in accordance with Article 20(3) have not been applied, the solutions adopted by the manufacturer, including those in other technical specifications applied, meet the corresponding essential health and safety requirements and have been applied correctly.

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Annex VII - EU Type-Examination

- 5. The notified body shall draw up an **evaluation report** that records the activities undertaken in accordance with point 4 and their outcomes. Without prejudice to its obligations vis-à-vis the notifying authorities, the notified body shall release the content of that report, in full or in part, only with the agreement of the manufacturer.

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Annex VII - EU Type-Examination

- 6. EU type-examination certificate
  - 6.1. Where the type meets the applicable essential health and safety requirements, the notified body shall issue an EU type-examination certificate to the manufacturer. The period of validity of a newly issued certificate and, where appropriate, of a renewed certificate shall not exceed five years.
  - 6.2. The EU type-examination certificate shall contain at least the following information:
    - (a) the name and identification number of the notified body;
    - (b) the name and address of the manufacturer and, if the application is lodged by an authorised representative, the name and address of that authorised representative;
    - (c) an identification of the machinery or related product covered by the certificate (type number);
    - (d) a statement that the machinery or related product type complies with the applicable essential health and safety requirements;
    - (e) where harmonised standards or common specifications adopted by the Commission in accordance with Article 20(3) have been fully or partially applied, the references of those standards or common specifications or parts thereof;
    - (f) where other technical specifications have been applied, the references of those technical specifications;
    - (g) the date of issue, the date of expiry and, where appropriate, the date(s) of renewal;
    - (h) any conditions attached to the issuing of the certificate.
  - 6.3. The EU type-examination certificate may have one or more annexes attached.
  - 6.4. Where the type does not satisfy the applicable essential health and safety requirements, the notified body shall refuse to issue an EU type-examination certificate and shall inform the applicant accordingly, giving detailed reasons for its refusal.

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Annex VII - EU Type-Examination

- 7. Review of the EU type-examination certificate
  - 7.1. The notified body shall keep itself apprised of any changes in the generally acknowledged state of the art, which indicate that the approved type may no longer comply with the applicable essential health and safety requirements, and shall determine whether such changes require further investigation. If so, the notified body shall inform the manufacturer accordingly.
  - 7.2. The manufacturer shall inform the notified body that holds the technical documentation relating to the EU type- examination certificate of all modifications to the approved type and of all modifications to the technical documentation that may affect the conformity of the machinery or related product with the applicable essential health and safety requirements or the conditions for validity of that certificate. Such modifications shall require additional approval in the form of an addition to the original EU type-examination certificate.
  - 7.3. The manufacturer shall ensure that the machinery or related product continues to fulfil the applicable essential health and safety requirements in light of the state of the art.

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Annex VII - EU Type-Examination

- 7. Review of the EU type-examination certificate
  - 7.4. The manufacturer shall ask the notified body to review the EU type-examination certificate either:
    - (a) in the case of a modification to the approved type referred to in point 7.2;
    - (b) in the case of a change in the state of the art referred to in point 7.3;
    - (c) at the latest, before the date of expiry of the certificate.
    - In the case referred to in point (c), the review may lead to a renewal of the EU type-examination certificate only when the application is submitted by the manufacturer at the earliest 12 months and at the latest 6 months prior to the expiry date of the EU type-examination certificate. Where the manufacturer fails to comply with the deadlines mentioned above, the review may lead only to an approval in the form of an addition to the original EU type-examination certificate and the expiry date of the certificate shall be that of the original certificate.

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Annex VII - EU Type-Examination

- 7. Review of the EU type-examination certificate
  - 7.5. The notified body shall examine the machinery or related product type and, where necessary in the light of the changes made, carry out the relevant tests to ensure that the approved type continues to fulfil the applicable essential health and safety requirements. If the notified body is satisfied that the approved type continues to fulfil the applicable essential health and safety requirements, it shall renew the EU type-examination certificate or issue an addition to the original EU type-examination certificate. The notified body shall ensure that the review procedure is finalised before the expiry date of the EU type-examination certificate.
  - …

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Annex VII - EU Type-Examination

- 8. Each notified body shall inform its notifying authority concerning the EU type-examination certificates and/or any additions thereto which it has issued or withdrawn, and shall, periodically or upon request, make available to its notifying authority the list of such certificates and/or any additions thereto refused, suspended or otherwise restricted.

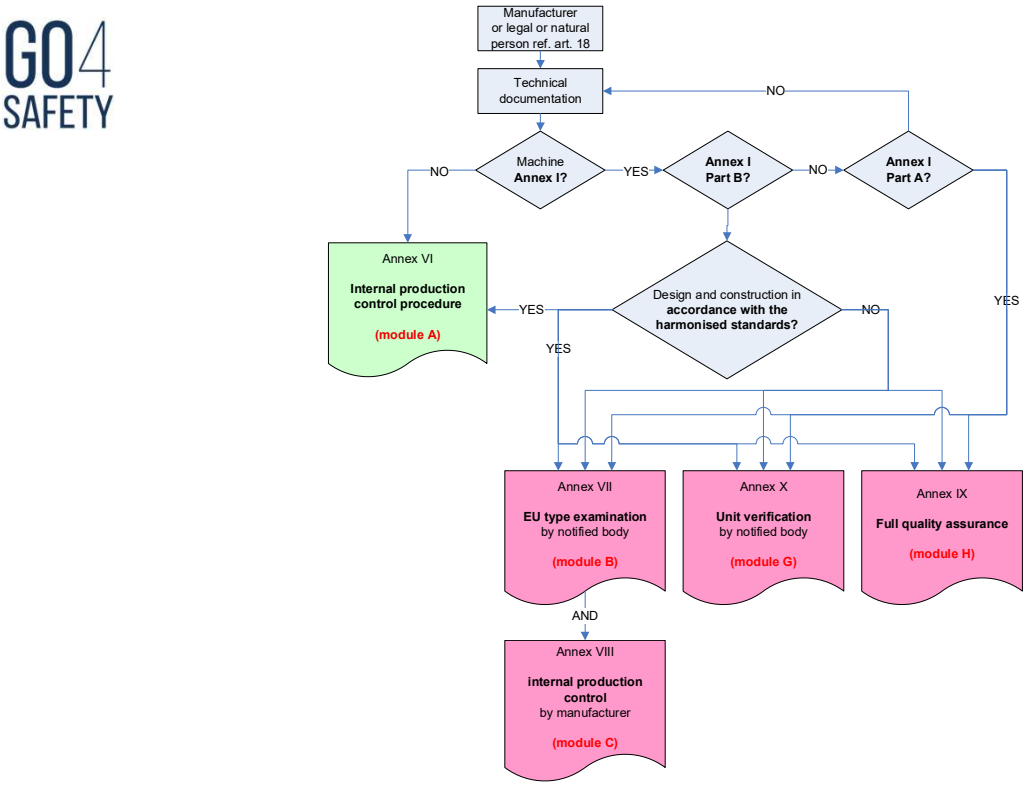
  Each notified body shall inform the other notified bodies concerning the EU type-examination certificates and/or any additions thereto, which it has refused, withdrawn, suspended or otherwise restricted, and, upon request, concerning the EU type-examination certificates and/or additions thereto which it has issued.

  The notified body shall keep a copy of the EU type-examination certificate, its annexes and additions, as well as the technical file including the documentation submitted by the manufacturer, for a period of five years after the expiry of the validity of that certificate.

- 9. The manufacturer shall keep a copy of the EU type-examination certificate, its annexes and additions, together with the technical documentation at the disposal of the national authorities, for at least 10 years after the machinery or related product has been placed on the market or put into service.

- 10. The manufacturer's authorised representative may lodge the application referred to in point 3 and fulfil the obligations set out in points 7.2, 7.4 and 9, provided that they are specified in the mandate.

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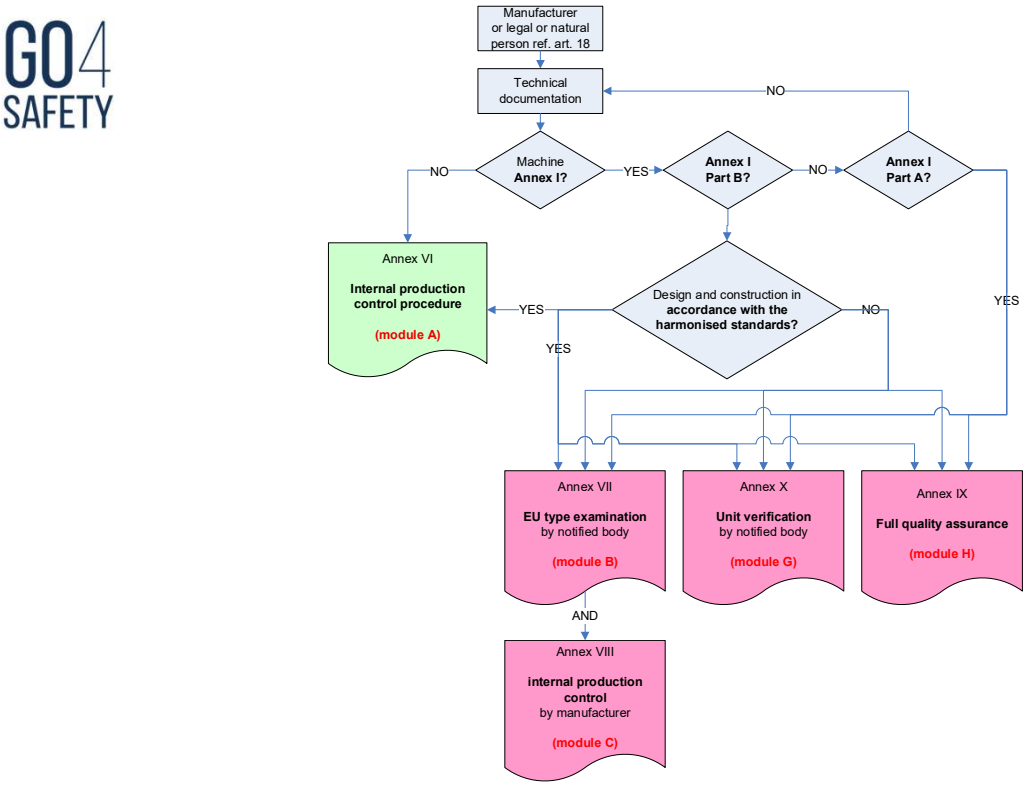


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Annex VIII - Conformity to type based on internal production control

- **Conformity to type based on internal production** control is the part of a conformity assessment procedure whereby the manufacturer fulfils the obligations laid down in points 2 and 3, and ensures and declares under its sole responsibility that the machinery or related product concerned is in conformity with the type described in the EU type-examination certificate and **satisfies the applicable requirements** of this Regulation.
  - The manufacturer shall take **all measures necessary so that the manufacturing process** and its monitoring **ensure conformity** of the manufactured machinery or related products with the type described in the EU type-examination certificate and with the applicable requirements of this Regulation.
  - The manufacturer shall **affix the CE marking** to all machinery or related products that are in conformity with the type described in the EU type-examination certificate and satisfy the applicable requirements of this Regulation .
  - The manufacturer shall **draw up an EU declaration of conformity for each machinery** or related product model and keep it at the disposal of the national authorities for at least 10 years after the machinery or related product has been placed on the market or put into service. The EU declaration of conformity shall identify the machinery or related product for which it has been drawn up. A copy of the EU declaration of conformity shall be made available to the relevant authorities upon request.
  - CE marking and EU declaration of conformity may be fulfilled by its authorised representative, on its behalf and under its responsibility, provided that they are specified in the mandate.

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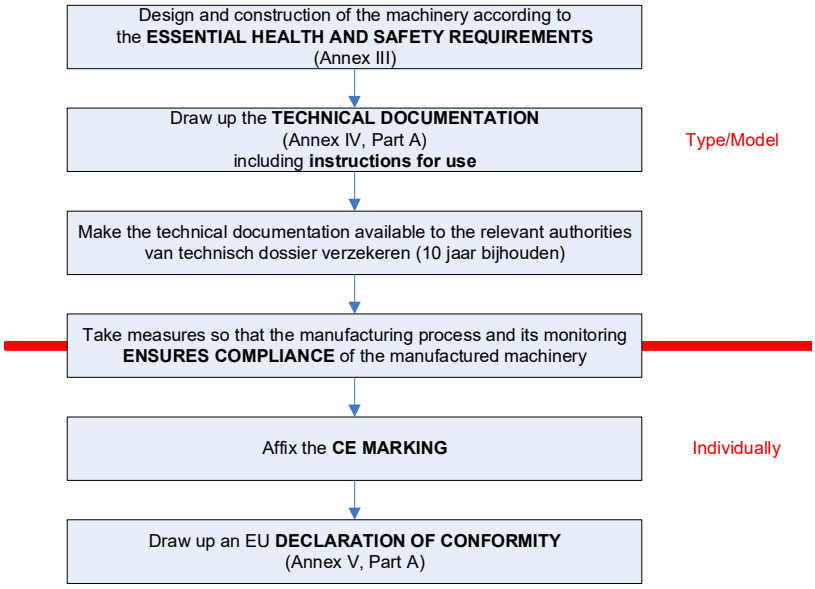


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Internal Production Control

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Annex VI - Internal production control



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Art. 8 Essential health and safety requirements

- **Machinery** or related products shall **only be made available on the market or put into service if,** where properly **installed and maintained and used for their intended use** or under conditions which can reasonably be foreseen, they **meet the essential health and safety requirements** set out in **Annex III**.
- **Partly completed machinery** shall **only be made available on the market** if it **meets the relevant essential health and safety requirements** set out in **Annex III**.

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Art. 9 Specific Union harmonisation legislation

- Where, for a certain product within the scope of this Regulation, the risks addressed by the essential health and safety requirements set out in Annex III are wholly or partly covered by Union **harmonisation legislation that is more specific** than this Regulation, **this Regulation shall not apply** to that product to the extent that that specific Union legislation covers such risks.

- *If there is a more specific European Regulation or Directive this Machinery Regulation does not apply to the specific product…*

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Annex III - Essential health & safety requirements

- Part A – Defintions
  - (a) ‘hazard’ means a potential source of injury or damage to health;
  - (b) ‘danger zone’ means any zone within and/or around machinery or a related product in which a person is subject to a risk to his or her health or safety;
  - (c) ‘exposed person’ means any person wholly or partially in a danger zone;
  - (d) ‘operator’ means the person or persons installing, operating, adjusting, maintaining, cleaning, repairing or moving machinery or a related product;
  - (e) ‘risk’ means a combination of the probability and the degree of an injury or damage to health that can arise in a hazardous situation;

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Annex III - Essential health & safety requirements

- Part A – Defintions
  - (f) ‘guard’ means a part of machinery or a related product used specifically to provide protection by means of a physical barrier;
  - (g) ‘protective device’ means a device (other than a guard) which reduces the risk, either alone or in conjunction with a guard;
  - (h) ‘intended use’ means the use of machinery or a related product in accordance with the information provided in the instructions for use;
  - (i) ‘reasonably foreseeable misuse’ means the use of machinery or a related product in a way not intended in the instructions for use, but which may result from readily predictable human behaviour.

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Annex III - Essential health & safety requirements

- Part B – General principles

- 1. The manufacturer of machinery or a related product shall ensure that a **risk assessment** is carried out in order to determine the essential health and safety requirements which apply to the machinery or related product. The machinery or related product shall then **be designed and constructed to eliminate hazards** or, if that is not possible, to **minimise all relevant risks**, taking into account the results of the risk assessment.

- 2. The obligations laid down by the **essential health and safety requirements only apply** when the corresponding hazard exists for the machinery or related product in question when it is **used under the conditions foreseen by the manufacturer or in foreseeable abnormal situations**. However, the principles of safety integration established in section 1.1.2 and the obligations concerning marking of machinery or related products referred to in section 1.7.3, and instructions for use referred to in section 1.7.4 apply in all cases.

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Annex III - Essential health & safety requirements

- Part B – General principles

- 3. The essential health and safety requirements laid down in this Annex are **mandatory**; however, **taking into account the state of the art**, it may not be possible to meet the objectives set by them. In that event, the machinery or related product shall, as far as possible, be designed and constructed with the purpose of approaching those objectives.

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Annex III - Essential health & safety requirements

1. ESSENTIAL HEALTH AND SAFETY REQUIREMENTS

- 1.1. **General remarks**

- 1.1.1. *Applicability*
  The obligations laid down by the essential health and safety requirements are applicable to partly completed machinery insofar as those requirements are relevant.

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- 1.1.2. *Principles of safety integration*
  - (a) Machinery or related products shall be designed and constructed so that they are fit for their function, and can be operated, adjusted and maintained without putting persons at risk when these operations are carried out under the conditions foreseen but also taking into account any reasonably foreseeable misuse thereof. The **aim of protective measures shall be to eliminate any risk throughout the foreseeable lifetime** of the machinery or related product including the phases of transport, assembly, dismantling, disabling and scrapping.
  - (b) In selecting the most appropriate methods, the manufacturer shall apply the following principles, in the order given:
    - (i) **eliminate hazards** or, if that is not possible, minimise risks (inherently safe machinery or related product design and construction);
    - (ii) take the **necessary protective measures** in relation to risks that cannot be eliminated;
    - (iii) **inform users of the residual risks** due to any shortcomings of the protective measures adopted, indicate whether any particular training is required and specify any need to provide personal protective equipment.

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Annex III - Essential health & safety requirements

- 1.1.2. *Principles of safety integration*
  - (c) When designing and constructing machinery or a related product and when drafting the instructions for use, the manufacturer shall envisage **not only the intended use of the machinery or related product but also any reasonably foreseeable misuse** thereof. The machinery or related product shall be **designed and constructed in such a way as to prevent abnormal use** if such use would engender a risk. Where appropriate, the instructions for use shall draw the user's attention to ways – which experience has shown might occur – in which the machinery or related product should not be used.
  - (d) Machinery or related products shall be designed and constructed to take account of the constraints to which the operator is subject as a result of the necessary or foreseeable use of personal protective equipment.
  - (e) Machinery or related products shall be designed and constructed in such a way that it is possible for the user, where applicable, to test the safety functions. The machinery or related product shall be supplied with all the special equipment and accessories, and where appropriate, with the description of specific functional test procedures, essential to enable it to be tested, adjusted, maintained and used safely.

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- 1.1.3. *Materials and products*
  The materials used to construct machinery or related products, or products used or created during its use, shall not endanger the health and safety of persons. In particular, where fluids are used, machinery or related products shall be designed and constructed to prevent risks due to filling, use, recovery or draining.

- 1.1.4. *Lighting*
  Machinery or related products shall be supplied with integral lighting suitable for the operations concerned, where the absence thereof is likely to cause a risk despite ambient lighting of normal intensity.
  Machinery or related products shall be designed and constructed so that there is no area of shadow likely to cause nuisance, that there is no irritating dazzle and that there are no dangerous stroboscopic effects on moving parts due to the lighting.
  Internal parts requiring frequent inspection and adjustment, and maintenance areas shall be provided with appropriate lighting.

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Annex III - Essential health & safety requirements

- 1.1.5. *Design of machinery or a related product to facilitate its handling*

  Machinery or a related product or each component part thereof, shall:

  - (a) be capable of being handled and transported safely;
  - (b) be packaged or designed so that it can be stored safely and without damage.

  During the transportation of the machinery or related product or its component parts, there shall be no possibility of sudden movements or of hazards due to instability as long as the machinery or related product or its component parts are handled in accordance with the instructions.

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Annex III - Essential health & safety requirements

- 1.1.6. *Ergonomics*

  Under the intended conditions of use, the discomfort, fatigue and physical and psychological stress faced by the operator shall be eliminated or reduced to the minimum possible, taking into account at least, the following ergonomic principles:

  - (a) allowing for the variability of the operator's physical dimensions, strength and stamina;
  - (b) avoiding the need for demanding work postures or movements and manual force exertions that exceed the operator's capacity;
  - (c) providing enough space for movements of the parts of the operator's body;
  - (d) avoiding a machine-determined work rate;
  - (e) avoiding monitoring that requires lengthy concentration;

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Annex III - Essential health & safety requirements

- 1.1.6. *Ergonomics*

  Under the intended conditions of use, the discomfort, fatigue and physical and psychological stress faced by the operator shall be eliminated or reduced to the minimum possible, taking into account at least, the following ergonomic principles:

  - (f) adapting the human-machine interface to the foreseeable characteristics of the operators, including with respect to machinery or a related product with intended fully or partially self-evolving behaviour or logic that is designed to operate with varying levels of autonomy;
  - (g) where relevant, adapting machinery or a related product with intended fully or partially self-evolving behaviour or logic that is designed to operate with varying levels of autonomy to respond to people adequately and appropriately (such as verbally through words and non-verbally through gestures, facial expressions or body movement) and to communicate its planned actions (such as what it is going to do and why) to operators in a comprehensible manner.

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1.1.7. *Operating positions*

The operating position shall be designed and constructed in such a way as to avoid any risk due to exhaust gases or lack of oxygen.

If the machinery or related product is intended to be used in a hazardous environment presenting risks to the health and safety of the operator or if the machinery or related product itself gives rise to a hazardous environment, adequate means shall be provided to ensure that the operator has good working conditions and is protected against any foreseeable hazards.

Where appropriate, the operating position shall be fitted with an adequate cabin designed, constructed or equipped to fulfil the above requirements. The exit shall allow rapid evacuation. Moreover, when applicable, an emergency exit shall be provided in a direction which is different from the usual exit.

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1.1.8. *Seating*

Where appropriate and where the working conditions so permit, work stations constituting an integral part of the machinery or related product shall be designed for the installation of seats.

If the operator is intended to sit during operation and the operating position is an integral part of the machinery or related product, the seat shall be provided with the machinery or related product.

The operator's seat shall enable him or her to maintain a stable position. Furthermore, the seat and its distance from the control devices shall be capable of being adapted to the operator.

If the machinery or related product is subject to vibrations, the seat shall be designed and constructed in such a way as to reduce the vibrations transmitted to the operator to the lowest level that is reasonably possible. The seat mountings shall withstand all stresses to which they can be subjected. Where there is no floor beneath the feet of the operator, footrests covered with a slip-resistant material shall be provided.

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1.1.9. *Protection against corruption*

The machinery or related product shall be designed and constructed so that the connection to it of another device, via any feature of the connected device itself or via any remote device that communicates with the machinery or related product does not lead to a hazardous situation.

A hardware component transmitting signal or data, relevant for connection or access to software that is critical for the compliance of the machinery or related product with the relevant essential health and safety requirements shall be designed so that it is adequately protected against accidental or intentional corruption. The machinery or related product shall collect evidence of a legitimate or illegitimate intervention in that hardware component, when relevant for connection or access to software that is critical for the compliance of the machinery or related product.

Software and data that are critical for the compliance of the machinery or related product with the relevant essential health and safety requirements shall be identified as such and shall be adequately protected against accidental or intentional corruption.

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1.1.9. *Protection against corruption*

The machinery or related product shall identify the software installed on it that is necessary for it to operate safely, and shall be able to provide that information at all times in an easily accessible form.

The machinery or related product shall collect evidence of a legitimate or illegitimate intervention in the software or a modification of the software installed on the machinery or related product or its configuration.

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Annex III - Essential health & safety requirements

1. ESSENTIAL HEALTH AND SAFETY REQUIREMENTS

- 1.2. **Control systems**

- 1.2.1. *Safety and reliability of control systems:* Control systems shall be designed and constructed in such a way as to prevent hazardous situations from arising.
- 1.2.2. *Control devices*
- 1.2.3. *Starting*
- 1.2.4. *Stopping*
  - *Normal stop*
  - *Operational stop*
  - *Emergency stop*

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Annex III - Essential health & safety requirements

1. ESSENTIAL HEALTH AND SAFETY REQUIREMENTS

- 1.2. **Control systems**

- *1.2.5. Selection of control or operating modes:* The control or operating mode selected shall override all other control or operating modes, with the exception of the emergency stop.
- 1.2.6. *Failure of the power supply or communication network connection:* The interruption, the re-establishment after an interruption or the fluctuation in whatever manner of the power supply or communication network connection to the machinery or related product shall not lead to hazardous situations.

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Annex III - Essential health & safety requirements

1. ESSENTIAL HEALTH AND SAFETY REQUIREMENTS

- 1.3. **Protection against mechanical risks**
- 1.3.1. *Risk of loss of stability*
- 1.3.2. *Risk of break-up during operation*
- 1.3.3. *Risks due to falling or ejected objects*
- 1.3.4. *Risks due to surfaces, edges or angles*
- 1.3.5. *Risks related to a combined machinery or related product*
- 1.3.6. *Risks related to variations in operating conditions*
- 1.3.7. *Risks related to moving parts*
- 1.3.8. *Choice of protection against risks arising from moving parts*
- 1.3.9. *Risks of uncontrolled movements*

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Annex III - Essential health & safety requirements

1. ESSENTIAL HEALTH AND SAFETY REQUIREMENTS

- 1.4. **Required characteristics of guards and protective devices**
  - Guards and protective devices shall:
    - (a) be of robust construction;
    - (b) be securely held in place;
    - (c) not give rise to any additional hazard;
    - (d) not be easy to by-pass or render non-operational;
    - (e) be located at an adequate distance from the danger zone;
    - (f) cause minimum obstruction to the view of the production process, and;

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Annex III - Essential health & safety requirements

1. ESSENTIAL HEALTH AND SAFETY REQUIREMENTS

- 1.4. **Required characteristics of guards and protective devices**
  - Guards and protective devices shall:
    - (g) enable essential work to be carried out on the installation and/or replacement of tools and for maintenance purposes by restricting access exclusively to the area where the work has to be done, if possible without the guard having to be removed or the protective device having to be disabled.
  - In addition, guards shall, where possible, protect against the ejection or falling of materials or objects and against emissions generated by the machinery or related product.

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Annex III - Essential health & safety requirements

- 1. ESSENTIAL HEALTH AND SAFETY REQUIREMENTS

- 1.5. **Risks due to other causes**
- 1.5.1. *Electricity supply*
- 1.5.2. *Static electricity*
- 1.5.3. *Energy supply other than electricity*
- 1.5.4. *Errors of fitting*
- 1.5.5. *Extreme temperatures*
- 1.5.6. *Fire*
- 1.5.7. *Explosion*
- 1.5.8. *Noise*

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Annex III - Essential health & safety requirements

- 1. ESSENTIAL HEALTH AND SAFETY REQUIREMENTS

- 1.5. **Risks due to other causes**
- 1.5.9. *Vibrations*
- 1.5.10. *Radiation*
- 1.5.11. *External radiation*
- 1.5.12. *Laser radiation*
- 1.5.13. *Emissions of hazardous materials and substances*
- 1.5.14. *Risk of being trapped in a machine*
- 1.5.15. *Risk of slipping, tripping or falling*
- 1.5.16. *Lightning*

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Annex III - Essential health & safety requirements

- 1. ESSENTIAL HEALTH AND SAFETY REQUIREMENTS

- 1.6. **Maintenance**
- 1.6.1. *Machinery or related product maintenance*
- 1.6.2. *Access to operating positions and servicing points*
- 1.6.3. *Isolation of energy sources*
- 1.6.4. *Operator intervention*
- 1.6.5. *Cleaning of internal parts*

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Annex III - Essential health & safety requirements

- 1. ESSENTIAL HEALTH AND SAFETY REQUIREMENTS

- 1.7. **Information**
- 1.7.1. *Information and warnings on the machinery or related product*
- 1.7.2. *Warning of residual risks*
- 1.7.3. *Marking of machinery or related products*
- 1.7.4. *Instructions for use*
- 1.7.5. *Sales literature*

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Instructions for use

Instructions for use shall contain, where applicable, at least the following information:

- (a) the business name and full address of the manufacturer and, where applicable, of its authorised representative;
- (b) the designation of the machinery or related product as marked on the machinery or related product itself, except for the serial number (see section 1.7.3);
- (c) the EU declaration of conformity, or the internet address or machine readable code, where the EU declaration of conformity can be accessed, in accordance with Article 10(8);
- (d) a general description of the machinery or related product;
- (e) the drawings, diagrams, descriptions and explanations necessary for the use, maintenance and repair of the machinery or related product and for checking its correct functioning;
- (f) a description of the workstation(s) likely to be occupied by operators;
- (g) a description of the intended use of the machinery or related product;

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Instructions for use

Instructions for use shall contain, where applicable, at least the following information:

- (h) warnings concerning the ways in which the machinery or related product must not be used that experience has shown might occur;
- (i) assembly, installation and connection instructions, including drawings, diagrams and the means of attachment and the designation of the chassis or installation on which the machinery or related product is to be mounted;
- (j) instructions relating to installation and assembly for reducing noise or vibration;
- (k) instructions for the putting into service and use of the machinery or related product and, if necessary, instructions for the training of operators;
- (l) information about the residual risks that remain despite the inherent safe design measures, safeguarding and complementary protective measures adopted;
- (m) instructions on the protective measures to be taken by the user, including, where appropriate, the personal protective equipment to be provided;

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Instructions for use

Instructions for use shall contain, where applicable, at least the following information:

- (n) the essential characteristics of tools, which may be fitted to the machinery or related product;
- (o) the conditions in which the machinery or related product meets the requirement of stability during use, transportation, assembly, dismantling when out of service, testing or foreseeable breakdowns;
- (p) instructions with a view to ensuring that transport, handling and storage operations can be made safely, giving the mass of the machinery or related product and of its various parts where these are regularly to be transported separately;
- (q) the operating method to be followed in the event of accident or breakdown; if a blockage is likely to occur, the operating method to be followed so as to enable the equipment to be safely unblocked;
- (r) the description of the adjustment and maintenance operations that should be carried out by the user and the preventive maintenance measures that should be observed taking account of the design and the use of the machinery or related product;

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Instructions for use

Instructions for use shall contain, where applicable, at least the following information:

- (s) instructions designed to enable adjustment and maintenance to be carried out safely, including the protective measures that should be taken during these operations;
- (t) the specifications of the spare parts to be used, when these affect the health and safety of operators;
- (u) the information on airborne noise emissions
- (v) information on the necessary precautions, devices and means for the immediate and gentle rescue of persons;
- (w) where machinery or related products are likely to emit non-ionising radiation, which may cause harm to persons, in particular persons with active or non-active implantable medical devices, information concerning the radiation emitted for the operator and exposed persons;
- (x) where the design of machinery or related products allows emissions of hazardous substances from the machinery or related product, the characteristics of the capturing, filtration or discharge device if such device is not provided with the machinery or related product

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Annex III - Essential health & safety requirements

- 2. SUPPLEMENTARY ESSENTIAL HEALTH AND SAFETY REQUIREMENTS FOR CERTAIN CATEGORIES OF MACHINERY AND RELATED PRODUCTS

- 2.1. **Machinery and related products for foodstuffs and machinery and related products for cosmetics or pharmaceutical products**
- 2.1.1. *General*
  Machinery or related products intended for use with foodstuffs or with cosmetics or pharmaceutical products shall be designed and constructed in such a way as to avoid any risk of infection, sickness or contagion.
- 2.1.2. *Instructions for use*
  The instructions for use for machinery or related products for foodstuffs and machinery or related products for cosmetics or pharmaceutical products shall indicate recommended products and methods for cleaning, disinfecting and

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Annex III - Essential health & safety requirements

- 2. SUPPLEMENTARY ESSENTIAL HEALTH AND SAFETY REQUIREMENTS FOR CERTAIN CATEGORIES OF MACHINERY AND RELATED PRODUCTS

- 2.2. **Portable hand-held or hand-guided machinery or related products**
- 2.2.1. *General*
  Portable hand-held or hand-guided machinery or related products shall:
  - (a) have a supporting surface of sufficient size and have a sufficient number of handles and supports of an appropriate size, arranged in such a way as to ensure the stability;
  - (b) except where technically impossible, or where there is an independent control device, in the case of handles which cannot be released in complete safety, be fitted with manual start and stop control devices arranged in such a way that the operator can operate them without releasing the handles;
  - (c) present no risks of accidental starting or continued operation after the operator has released the handles; equivalent steps shall be taken if this requirement is not technically feasible;

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Annex III - Essential health & safety requirements

- 2. SUPPLEMENTARY ESSENTIAL HEALTH AND SAFETY REQUIREMENTS FOR CERTAIN CATEGORIES OF MACHINERY AND RELATED PRODUCTS

- 2.2. **Portable hand-held or hand-guided machinery or related products**
- 2.2.1. *General*
  Portable hand-held or hand-guided machinery or related products shall:
  - (d) permit, where necessary, visual observation of the danger zone and of the action of the tool with the material being processed;
  - (e) have a device or a connected exhaust system, with an extraction connection outlet or equivalent system to capture or reduce emissions of hazardous substances; this requirement does not apply if it leads to a new hazard or where the main function of the machinery or related product is the application of hazardous substances and to emissions of internal combustion engines;
  - (f) be designed and constructed in such a way that the handles of portable machinery or related products make starting and stopping straightforward.

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Annex III - Essential health & safety requirements

- 2. SUPPLEMENTARY ESSENTIAL HEALTH AND SAFETY REQUIREMENTS FOR CERTAIN CATEGORIES OF MACHINERY AND RELATED PRODUCTS

- 2.3. **Machinery or related products for working wood and material with similar physical characteristics**
  - (a) the machinery or related product shall be designed, constructed or equipped in such a way that the piece being machined can be placed and guided in safety; where the piece is hand-held on a work-bench, the latter shall be sufficiently stable during the work and shall not impede the movement of the piece;
  - (b) where the machinery or related product is likely to be used in conditions involving the risk of ejection of work pieces or parts of them, it shall be designed, constructed, or equipped in such a way as to prevent such ejection, or, if this is not possible, so that the ejection does not engender risks for the operator and/or exposed persons;
  - (c) the machinery or related product shall be equipped with an automatic brake that stops the tool in a sufficiently short time if there is a risk of contact with the tool whilst it runs down;
  - (d) where the tool is incorporated into non-fully automated machinery or a related product, that machinery or related product shall be designed and constructed in such a way as to eliminate or reduce the risk of accidental injury.

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Annex III - Essential health & safety requirements

- 2. SUPPLEMENTARY ESSENTIAL HEALTH AND SAFETY REQUIREMENTS FOR CERTAIN CATEGORIES OF MACHINERY AND RELATED PRODUCTS
- 2.4. **Machinery or related products for plant protection products application**

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Annex III - Essential health & safety requirements

- 3. SUPPLEMENTARY ESSENTIAL HEALTH AND SAFETY REQUIREMENTS TO OFFSET RISKS DUE TO THE MOBILITY OF MACHINERY OR RELATED PRODUCTS

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Annex III - Essential health & safety requirements

- 4. SUPPLEMENTARY ESSENTIAL HEALTH AND SAFETY REQUIREMENTS TO OFFSET RISKS DUE TO LIFTING OPERATIONS

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Annex III - Essential health & safety requirements

- 5. SUPPLEMENTARY ESSENTIAL HEALTH AND SAFETY REQUIREMENTS FOR MACHINERY OR RELATED PRODUCTS INTENDED FOR UNDERGROUND WORK

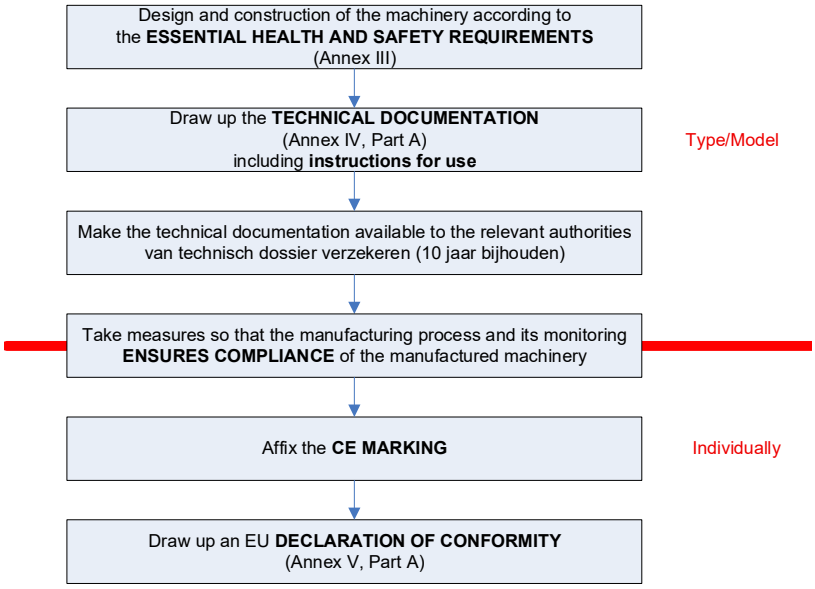
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Annex III - Essential health & safety requirements

- 6. SUPPLEMENTARY ESSENTIAL HEALTH AND SAFETY REQUIREMENTS FOR MACHINERY OR RELATED PRODUCTS PRESENTING PARTICULAR RISKS DUE TO THE LIFTING OF PERSONS

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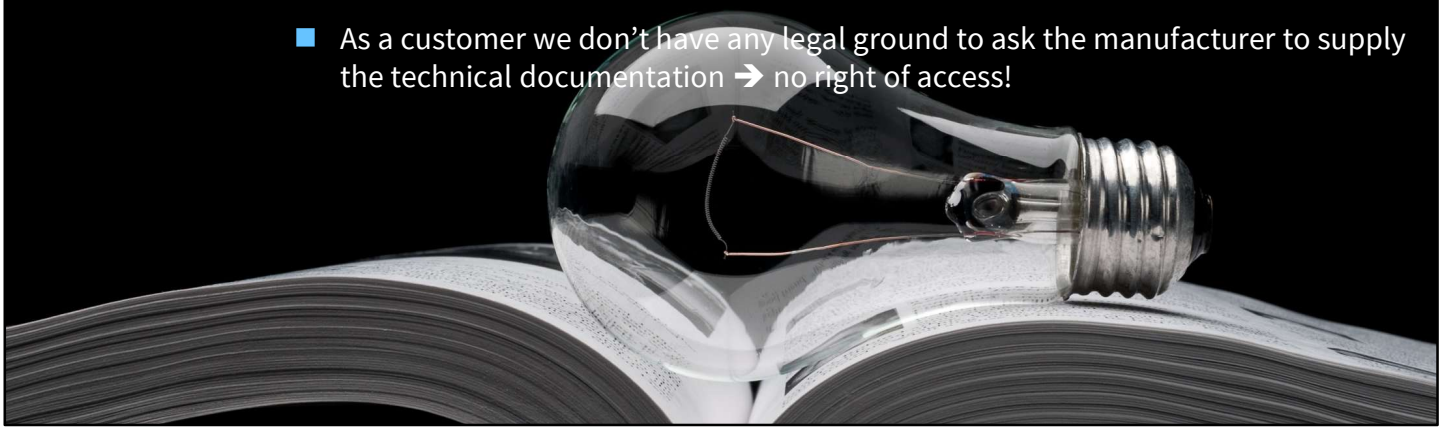
Annex VI - Internal production control



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Technical documentation

- Drawn up by the manufacturer
- Only appropriate **national authorities** (FOD Economie in Belgium) and the **notified body** involved in the conformity assessment procedure have the right to access the technical documentation and request for a copy on a motivated demand
- As a customer we don't have any legal ground to ask the manufacturer to supply the technical documentation ➔ no right of access!



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Annex IV - Technical documentation

- PART A – Technical documentation for machinery and related products
- PART B – Technical documentation for partly completed machinery

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Annex IV A - Technical documentation for machinery and related products

- The technical documentation shall specify the **means used by the manufacturer to ensure the conformity** of the machinery or related product with the applicable essential health and safety requirements set out in Annex III.

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Annex IV A - Technical documentation for machinery and related products

- The technical documentation shall include at least the following elements:
  - (a) a complete **description of the machinery** or related product and of its **intended use**;
  - (b) the **documentation on risk assessment** demonstrating the procedure carried out, including:
    - (i) a **list of the essential health and safety requirements that are applicable** to the machinery or related product;
    - (ii) the **description of the protective measures** implemented to meet each applicable essential health and safety requirement and, when appropriate, the indication of the residual risks associated with the machinery or related product;
  - (c) **design and manufacturing drawings and schemes** of the machinery or related product and of its components, sub- assemblies and circuits; ➔ *electrical scheme, pneumatics, etc.*

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Annex IV A - Technical documentation for machinery and related products

- The technical documentation shall include at least the following elements:
  - (d) the **descriptions** and **explanations necessary for the understanding** of the drawings and schemes referred to in point (c) and of the operation of the machinery or related product;
  - (e) the **references of the harmonised standards** referred to in Article 20(1) or common specifications adopted by the Commission in accordance with Article 20(3) that have been applied for the design and manufacture of the machinery or related product. In the event of partial application of harmonised standards or common specifications, the documentation shall specify the parts, which have been applied;
  - (f) where harmonised standards or common specifications have not been applied or have been only partially applied, descriptions of the **other technical specifications that have been applied** in order to meet each applicable essential health and safety requirement;

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Annex IV A - Technical documentation for machinery and related products

- The technical documentation shall include at least the following elements:
  - (g) **reports** and/or **results of the design calculations**, **tests**, **inspections** and **examinations** carried out to verify the conformity of the machinery or related product with the applicable essential health and safety requirements;
  - (h) a description of the **means used by the manufacturer during the production** of the machinery or related product **to ensure the conformity of the machinery** or related product produced with the design specifications;
  - (i) a **copy of the instructions for use** and the information set out in section 1.7.4 of Annex III;
  - (j) where appropriate, the **EU declaration of incorporation for partly completed machinery** set out in Annex V, Part B, and the **assembly instructions** set out in Annex XI;

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Annex IV A - Technical documentation for machinery and related products

- The technical documentation shall include at least the following elements:
  - (k) where appropriate, copies of **the EU declarations of conformity** of machinery or related products as well as any product covered by other Union harmonisation legislation incorporated into the machinery or related product;
  - (l) for machinery or related products produced in series, the **internal measures** that will be implemented **to ensure** that the machinery or related **product remains in conformity** with this Regulation;

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Annex IV A - Technical documentation for machinery and related products

- The technical documentation shall include at least the following elements:
  - (m) the **source code or programming logic of the safety related software** to demonstrate the conformity of the machinery or related product with this Regulation further to a reasoned request from a competent national authority provided that is necessary in order for those authorities to be able to check compliance with the essential health and safety requirements set out in Annex III;
  - (n) for sensor-fed, remotely-driven, or autonomous machinery or related products, if the safety related operations are controlled by sensor data, a description, where appropriate, of the general characteristics, capabilities and limitations of the system, data, development, testing and validation processes used;
  - (o) the results of research and tests on components, fittings or the machinery or related product carried out by the manufacturer to determine whether by its design or construction it is capable of being assembled and put into service safely.

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  - (n) for sensor-fed, remotely-driven, or autonomous machinery or related products, if the safety related operations are controlled by sensor data, a description, where appropriate, of the general characteristics, capabilities and limitations of the system, data, development, testing and validation processes used;
  - (o) the results of research and tests on components, fittings or the machinery or related product carried out by the manufacturer to determine whether by its design or construction it is capable of being assembled and put into service safely.

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Technical documentation

- *Remains at the disposal of the authorities for a**t least ten years after** the date of manufacture of the machinery / partly completed machinery or of the last unit produced in series production*
- *Must not be in the territory of the EU*
- *Does not have to be permanently available in a material form*
- *It must be possible to assemble and make available the components of the file within a time appropriate with their complexity*
- *No detailed drawings or other specific information on the components used is required, except where knowledge of them is essential for checking conformity with the essential health and safety requirements*
- *Failure to submit the technical documentation following a reasoned request from the national authorities may be sufficient to give doubts as to the conformity of the machinery with the essential health and safety requirements.*

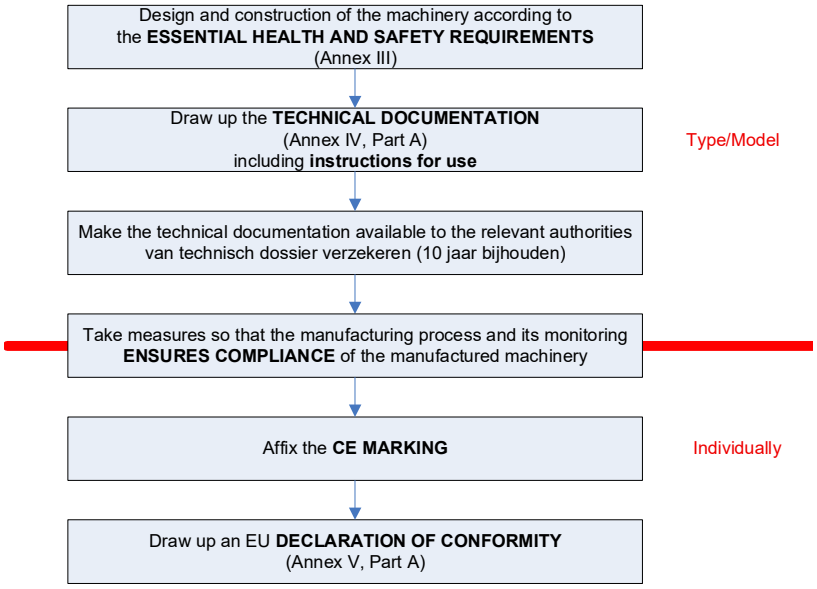
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Technical documentation

- *Document must include all the requirements + for each requirement a solution chosen by the designer*
- *If a standard has been applied to meet the requirements, it is sufficient to state it*
- *If this standard is not a harmonised standard*
  - *no automatic presumption of conformity*
  - *evidence of the manufacturer's commitment to applying the standard*

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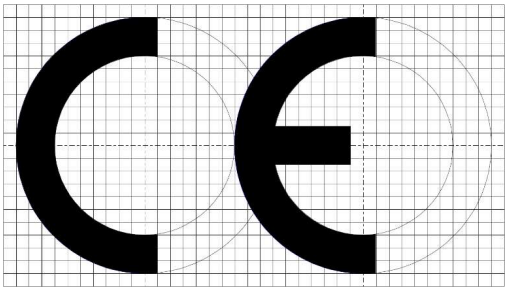
Annex VI - Internal production control



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Art. 23 General principles of the CE marking

- The CE marking shall be subject to the general principles set out in Article 30 of Regulation (EC) No 765/2008.



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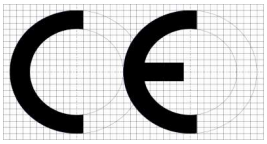
Art. 24 Rules for affixing the CE marking to machinery and related products

- (1) The CE marking shall be affixed **visibly, legibly and indelibly** to the machinery or related product. Where that is not possible or not warranted on account of the nature of the machinery or related product, it shall be affixed to the packaging and to the documents accompanying the machinery or related product.
- (2) The CE marking shall be **affixed before the machinery or related product is placed on the market or put into service**.
- (3) Where the conformity of machinery or a related product is assessed in accordance with the conformity assessment procedure referred to in Article 25(2), points (a), (b) and (c) and in Article 25(3), points (b), (c) and (d), the CE marking shall be followed by the **identification number of the notified body involved** in that procedure. The identification number of that notified body shall be affixed by the body itself or, under its instructions, by the manufacturer or the manufacturer's authorised representative.
- (4) The CE marking and, where applicable, the identification number of the notified body may be followed by a pictogram or any other marking indicating a special risk or use.
- (5) Member States shall build upon existing mechanisms to ensure correct application of the regime governing the CE marking and shall take appropriate action in the event of improper use of that marking.

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CE marking

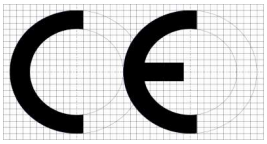
- *Markings, signs or inscriptions to machinery which are likely to mislead third parties as to the meaning or the graphic form, or both, of the CE marking shall not be affixed.*
- *Other markings may be affixed to machinery if this does not impair the visibility, legibility and meaning of the CE marking.*
- *Possibilities*
  - *until 31/12/1994* — *CE 94*
  - *01/01/1995-31/12/1996* — *CE 95 / CE 96 / CE (3 correct possibilities)*
  - *from 01/01/1997* — *CE*



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What is the real meaning of CE-marking?

- *The manufacturer indicates that the product meets all essential health and safety requirements of the applicable economic directives / regulations (all "New Approach" regulation / directives)*
- *The product was subjected to an appropriate conformity assessment procedure*
- *Control by economic authorities (4 men + horsehead)*
- *No quality guarantee for the user:*
  CE is worth what the manufacturer is worth



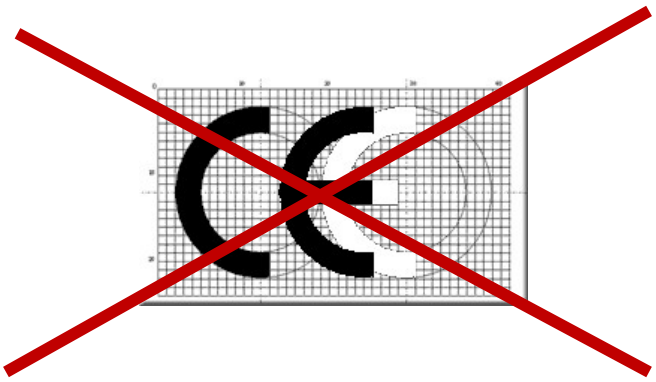
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Economic directives and regulations

Machinery regulation	(EU) 2023/1230	Covers health and safety risks of machinery and other related products
Low voltage directive	2014/35/EU	Covers health and safety risks of electrical equipment operating between 50 and 1000V AC and 75 and 1500V DC
Electromagnetic compatibility	2014/30/EU	Ensures that electrical and electronic equipment does not disturb, or is not disturbed by, other equipment
Radio equipment directive	2014/53/EU	Regulates all radio equipment, ensuring efficient use of the radio spectrum
Equipment for explosive atmospheres	2014/34/EU	Covers equipment and protective systems intended for use in potentially explosive atmospheres
Simple pressure vessels directive	2014/29/EU	Simple pressure vessels
Pressure equipment directive	2014/68/EU	Regulates stationary pressure equipment with a maximum allowable pressure greater than 0,5 bar
Lifts directive	2014/33/EU	Regulates the safety of elevators and their safety components
Gas appliance regulation	(EU) 2016/426	Appliances burning gaseous fuels
Personal protective equipment	(EU) 2016/425	Covers equipment designed to be worn to protect against health or safety hazards.
Construction products regulation	(EU) 2024/3110	Rules for construction products
Toy safety directive	2009/48/EC	Governs safety requirements for toys intended for use by children under 14 years old

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CE-marking vs. China Export



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Left
are correct and real
CE Conformity Marking

上边为正确的和真正的CE标志(标记)

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下面为不正确的或假冒的CE标志(标记)

Below are mis-use or fake CE Conformity Marking



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Marking on machinery

- CE-marking
- Manufacturers shall indicate
  - their **name**, **registered trade name** or registered **trade mark**
  - **Postal address** and **website**, **e-mail address** or other digital contact
- Manufacturers shall ensure that the machinery or related product bears at least
  - a **designation of the machinery** or related product **model**,
  - series or **type**,
  - the **year of construction**, namely the year in which the manufacturing process was completed,
  - **batch or serial number** or other element allowing its identification that exists

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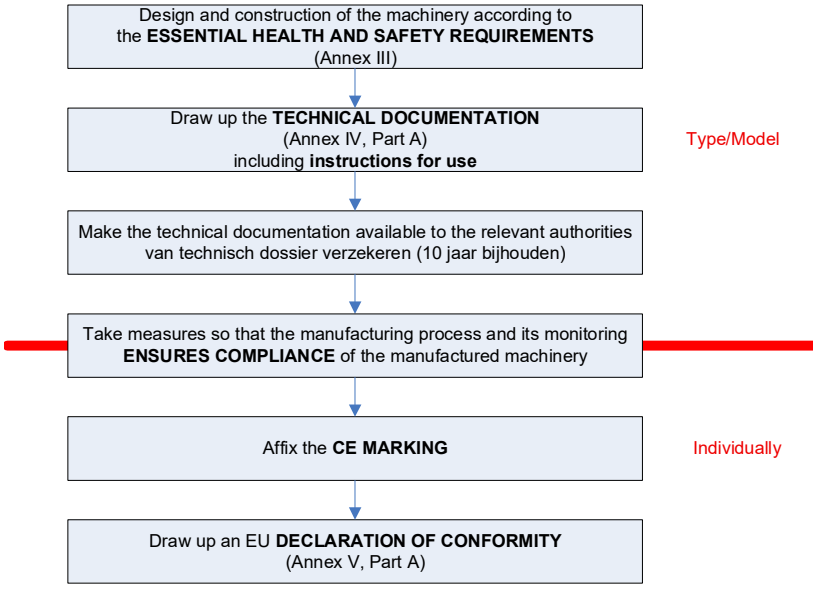
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Marking on machinery

- *It is forbidden to backdate or postdate the machine when CE marking is affixed.*
- *If a machine is designed and built to be used in potentially explosive atmospheres, this must also be stated.*
- *Also mention all the information necessary for safe use.*
- *Indicate the mass of the machinery or component indelibly, legibly and unambiguously if a component of the machinery is to be moved with lifting appliances during its use.*

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Annex VI - Internal production control



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Annex V - EU declaration

- PART A – EU declaration of conformity of machinery and related products
- PART B – EU declaration of incorporation of partly completed machinery

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Art. 21 EU declaration of conformity of machinery and related products

- (1) The EU declaration of conformity shall **state that the fulfilment of the applicable essential health and safety requirements set out in Annex III has been demonstrated**.
- (2) The EU declaration of conformity shall **have the model structure set out in Annex V, Part A**, and shall contain the **elements specified in the relevant modules** set out in Annexes VI, VIII, IX, and X. It shall be continuously updated and shall be **translated into the language or languages required by the Member State** in which the machinery or related product is placed on the market, is made available on the market or put into service.
- (3) Where machinery or a related product is **subject to more than one Union legal act** that requires an EU declaration of conformity, **a single EU declaration of conformity** shall be drawn up in respect of all such acts. That declaration shall **contain the identification of the Union legal acts concerned**, including their publication references.
- (4) By drawing up the EU declaration of conformity, the **manufacturer shall assume responsibility for the compliance of the machinery o**r related product with the requirements laid down in this Regulation.

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EU declaration of conformity

- Art. 10
  - (2) **Manufacturer** shall **draw up the EU declaration of conformity**
  - (3) **Manufacturer** shall keep the EU declaration of conformity at the disposal of the market surveillance authorities **for at least 10 years after** the machinery or the related product **has been placed on the market or put into service**
  - (8) **Manufacturer** shall ensure that the **machinery** or related product is **accompanied by the EU declaration of conformity**
- Art. 12 (2) The mandate shall allow the **authorised representative** to keep the EU declaration of conformity of machinery and related products at the disposal of the national market surveillance authorities **for at least 10 years after** the product has been placed on the market
- Art. 13 (8) **Importers** shall, **for at least 10 years after** the machinery or related product has been placed on the market, **keep a copy of the EU declaration of conformity at the disposal** of the market surveillance authorities
- Art. 15 (2) Before making machinery or a related product available on the market, **distributors** shall verify that machinery or related **product is accompanied by the EU declaration of conformity**

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Annex V A - EU declaration of conformity of machinery and related products

- The EU declaration of conformity shall contain the following particulars:
  - 1. The machinery or related product (product **name**, **type**, **model**, **batch** or **serial number**) or substantially modified machinery or related product.
  - 2. **Name and address of the manufacturer** and, where applicable, its **authorised representative**.
  - 3. For *lifting machinery which is intended to be permanently installed* in a building or a structure and which cannot be assembled in the manufacturer's premises but can only be assembled at the place of use, *the address of that place*.
  - 4. **This declaration of conformity is issued under the sole responsibility of the manufacturer**.

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Annex V A - EU declaration of conformity of machinery and related products

- The EU declaration of conformity shall contain the following particulars:
  - 5. **Object of the declaration** (identification of the machinery or related product allowing traceability; where necessary for the identification of the machinery or related product, a colour image of sufficient clarity may be included).
  - 6. **The object of the declaration referred to in point 5 is in conformity with the following Union harmonisation legislation**.

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Annex V A - EU declaration of conformity of machinery and related products

- The EU declaration of conformity shall contain the following particulars:
  - 7. **References to the harmonised standards** referred to in Article 20(1) or common specifications adopted by the Commission in accordance with Article 20(3) **that were applied**, including the **date of the publication** of the reference to harmonised standards in the *Official Journal of the European Union*
    - or of the common specification, or references to the **other technical specifications**, **including their date**, in relation to which conformity is declared.
    - In the event of **partial application of harmonised standards** or common specifications, the EU declaration of conformity **shall specify the parts which were applied**.

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Annex V A - EU declaration of conformity of machinery and related products

- The EU declaration of conformity shall contain the following particulars:
  - 8. **Where applicable, the notified body** … (name, number) … performed the EU type-examination (Module B) and issued the EU type-examination certificate … (reference to that certificate), followed by conformity to type based on internal production control (module C) or the conformity based on unit verification (module G) or full quality assurance (module H).
  - 9. **Where applicable, the machinery or related product is subject to the conformity assessment procedure based on internal production control** (Module A).

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Annex V A - EU declaration of conformity of machinery and related products

- The EU declaration of conformity shall contain the following particulars:
  - 10. Additional information:
    - **Signed for and on behalf of** …
    - **Place and date of issue**
    - **Name, function**
    - **Signature**

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Lab Services bv
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4823 AE Breda
The Netherlands

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info@lab-services.nl
t +31 (0)76 53 10 420
f +31 (0)76 53 10 421

Lab Services
laboratory automation

Date of issue
May 3, 2024
Place of issue
Breda, The Netherlands

CE DECLARATION OF CONFORMITY

Manufacturer's Name:	Lab Services B.V.
Manufacturer's Address:	Nikkelstraat 5 4823 AE Breda THE NETHERLANDS
Declares that the product	**PlateButler®**
Serial No:	PB-24-SANGEN-3

To which this documentation relates, is in conformity with the following documents:

Directive:	2023/1230/EU on Machinery 2014/35/EU on Low Voltage 2014/30/EU on Electromagnetic Compatibility (EMC)

F. de Vugt
CTO

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9 Declaration of Conformity for the Complete System

We, Hamilton Bonaduz AG, Via Crusch 8, CH-7402 Bonaduz, Switzerland, issue this EU Declaration of Conformity and confirm that the following Product(s):

Complete System, containing units:

- **Sanofi R&D OPP30100874**
- Hamilton Microlab ML STARline
- Fluidx IntelliXcap96
- BMG Clariostar reader)
- BioTek 406 Washer 1)
- Thermo Cytomat 2C450-LiN II

Project Opp. **30100874**

complies with the following EU Directives (including all applicable amendments; ** based on EU Declaration of Conformity by third party legal manufacturers):

CE

Machinery Directive	2006/42/EC
* Low Voltage Directive	2014/35/EU
EMC Directive	2014/30/EU
RoHS II (incl. Amendments)	2011/65/EU, 2015/863/EU
Quality Management	EN ISO 9001:2015
Certification Body	TÜV Rheinland Cert GmbH, Am Grauen Stein, 51105 Köln, Germany
Applied Standards	see Declaration of Conformity of each unit

Authorized department for technical documents: Hamilton Quality Department

Hamilton Bonaduz AG

Christoph Mayerhofer
Project Leader

Matej Grilc
Quality Manager Risk

Bonaduz, 15.12.2025

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polyplan
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EG-conformiteitsverklaring
als bedoeld in de EG-machinerichtlijn 2006/42/EG, bijlage II 1.A
(Vertaling van de originele EG-conformiteitsverklaring)

Hiermee verklaart de fabrikant

naam: Polyplan GmbH
adres: Mitterstrassweg 23
D-82064 Straßlach-Dingharting

dat volgend product

omschrijving van de machine: volledig automatische PU-applicatie-installatie
machinetype: applicatie-installatie
machinenummer: 10171
ordernummer: 5702858172 / 105856 Polyplan project: AU-10171

aan alle ter zake geldende bepalingen van de hoger vermelde richtlijnen, met inbegrip van de op het moment van deze verklaring geldende wijzigingen daarvan, voldoet.

Het product voldoet aan volgende bijkomende EU-richtlijnen, met inbegrip van de op het moment van deze verklaring geldende wijzigingen.
EG-laagspanningsrichtlijn (2014/35/EU)
EG-richtlijn "Elektromagnetische comptabiliteit" (2014/30/EU)

Volgende geharmoniseerde normen (of gedeelten daarvan) werden toegepast:

DIN EN 60204	Elektrische uitrusting van machines
EN ISO 12100	Veiligheid van machines - Algemene ontwerpbeginselen - Risicobeoordeling en risicovermindering
DIN EN ISO 13850	Veiligheid van machines – NOODSTOP-inrichtingen - Ontwerpbeginselen
DIN EN ISO 13849-1	Voor de veiligheid relevante onderdelen van besturingsinrichtingen
EN 349	Veiligheid van machines – Minimumafstanden ter preventie van kneuzingen van lichaamsdelen
EN ISO 4413	Fluïdumtechniek - Algemene Regels en veiligheidstechnische, aan hydraulische installaties en aan de componenten daarvan gestelde eisen
EN ISO 4414	Fluïdumtechniek - Algemene Regels en veiligheidstechnische, aan pneumatische installaties en aan de componenten daarvan gestelde eisen
DIN EN ISO 10218	Industriële robots – Aan de veiligheid gestelde eisen
EN ISO 13857	Veiligheid van machines – Veiligheidsafstanden tegen het bereiken van gevarenzones met de bovenste en onderste ledematen
EN ISO 14119	Veiligheid van machines – Grendelinrichtingen in combinatie met scheidende beschermingsinrichtingen – Grondbeginselen voor inrichting en selectie
EN ISO 14120	Veiligheid van machines – Scheidende beschermingsinrichtingen – Algemene, aan inrichting, bouw en selectie van vaststaande en beweeglijke scheidende beschermingsinrichtingen gestelde eisen
EN 61496	Veiligheid van machines – Contactloos werkende beschermingsinrichtingen

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www.polyplangmbh.de
HRB München 106042
Directeur: Johann Resch

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Persoon die gemachtigd is, de technische documenten samen te stellen:
naam: Michaela Küßner
adres: Mitterstrassweg 23
D-82064 Straßlach-Dingharting

Plaats van afgifte: Straßlach
Datum van afgifte: 12.12.2017

Handtekening:
Naam van de ondergetekende: Johann Resch
Functie van de ondergetekende: directeur

Bij een niet met ons afgestemde wijziging van de machine is deze verklaring niet meer geldig.

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Art. 46 Formal non-compliace

- *Affixing the CE marking under this Regulation to products not covered by this Regulation*
- *The absence of the CE marking*
- *The affixing of a marking other than the CE marking rohibited*
- *Affixing the identification number of the notified body in violation or absence where required*
- *The absence of the EC declaration of conformity,*
- *Incomplete or absence of technical documentation*
- *Manufacturer and/or importer information is missing*
- *Administrative requirements by manufacturer or importer is not fulfilled*

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Partly Completed Machinery

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The PreciseFlex robots are intended for use with other equipment and are considered a subassembly rather than a complete piece of equipment on their own.



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Art. 11 Obligations of manufacturers of partly completed machinery

- (1) When placing partly completed machinery on the market, manufacturers shall ensure that it has been designed and constructed **in accordance with the relevant essential health and safety requirements** set out in Annex III
- (2) Before placing partly completed machinery on the market, manufacturers shall draw up the **technical documentation** set out in Annex IV, Part B
- (2) Where compliance of partly completed machinery with the relevant essential health and safety requirements set out in Annex III has been demonstrated in the technical documentation set out in Annex IV, Part B, manufacturers shall **draw up the EU declaration of incorporation** in accordance with Article 22.
- (7) Manufacturers shall ensure that the partly completed machinery is **accompanied by the assembly instructions** set out in Annex XI. The assembly instructions may be provided by the manufacturer in digital format.

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Annex IV - Technical documentation

- PART B – Technical documentation for partly completed machinery

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Annex IV B - Technical documentation for partly completed machinery

- The technical documentation shall specify the means used by the manufacturer to ensure the conformity of the partly completed machinery with the relevant essential health and safety requirements set out in Annex III.

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Annex IV B - Technical documentation for partly completed machinery

- The technical documentation shall include at least the following elements:
  - (a) a **complete description** of the partly completed machinery and of its intended function when incorporated into or assembled with machinery or other partly completed machinery or equipment;
  - (b) the **risk assessment documentation** showing the procedure carried out, including:
    - (i) a list of the **essential health and safety requirements which apply** to the partly completed machinery;
    - (ii) the **description of the protective measures** implemented to eliminate identified hazards or to reduce risks and, where appropriate, the indication of the residual risks;
  - (c) **design and manufacturing drawings and schemes** of the partly completed machinery and of its components, sub- assemblies and circuits;

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Annex IV B - Technical documentation for partly completed machinery

- The technical documentation shall include at least the following elements:
  - (d) the **descriptions and explanations necessary for the understanding** of the drawings and schemes referred to in point (c) and of the operation of the partly completed machinery;
  - (e) the references of the **harmonised standards** referred to in Article 20(1) or common specifications adopted by the Commission in accordance with Article 20(3) that have been applied for the design and manufacture of the partly completed machinery. In the event of partial application of harmonised standards or common specifications, the documentation shall specify the parts, which have been applied;
  - (f) where harmonised standards or common specifications have not been applied or have been only partially applied, descriptions of the **other technical specifications** that have been applied in order to meet each applicable essential health and safety requirement;

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Annex IV B - Technical documentation for partly completed machinery

- The technical documentation shall include at least the following elements:
  - (g) reports and/or results of the design **calculations**, **tests**, **inspections** and **examinations** carried out to verify the conformity of the partly completed machinery with the applicable essential health and safety requirements;
  - (h) a description of **the means used by the manufacturer during the production of the partly completed machinery to ensure the conformity** of the partly completed machinery produced with the design specifications;
  - (i) a **copy of the assembly instructions** for the partly completed machinery set out in Annex XI;
  - (j) for partly completed machinery produced in series, the internal measures that will be implemented to ensure that the partly completed machinery remains in conformity with the essential health and safety requirements applied;

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Annex IV B - Technical documentation for partly completed machinery

- The technical documentation shall include at least the following elements:
  - (k) the **source code or programming logic of the safety related software** upon a reasoned request from a competent national authority, provided that is necessary in order for those authorities to be able to check compliance with the essential health and safety requirements set out in Annex III;
  - (l) for sensor-fed, remotely-driven, or autonomous partly completed machinery, if the safety related operations are controlled by sensor data, a description, where appropriate, of the general characteristics, capabilities and limitations of the system, data, development, testing and validation processes used;
  - (m) the results of research and tests on components, fittings or the partly completed machinery carried out by the manufacturer to determine whether by its design or construction it is capable of being assembled and incorporated safely.

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Annex V - EU declaration

- PART B – EU declaration of incorporation of partly completed machinery

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Art. 22 EU declaration of incorporation of partly completed machinery

- (1) The EU declaration of incorporation shall state that the **fulfilment of the relevant essential health and safety requirements** set out in Annex III has been demonstrated.
- (2) The EU declaration of incorporation shall have the **model structure set out in Annex V, Part B**. It shall be continually updated and shall be **translated into the language or languages required by the Member State** in which the partly completed machinery is placed on the market or is made available on the market.
- (3) Where partly completed machinery is **subject to more than one Union legal** act requiring an EU declaration of conformity, the EU declaration of incorporation shall include a sentence declaring the conformity with such acts. That declaration shall **contain the identification of the Union legal acts concerned**, including their publication references.
- (4) By drawing up the EU declaration of incorporation, the **manufacturer shall assume responsibility for the compliance** of the partly completed machinery with the requirements laid down in this Regulation.

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Annex V B - EU declaration of incorporation of partly completed machinery

- The declaration of incorporation shall contain the following particulars:
  - 1. The partly completed machinery (**product**, **type**, **model**, **batch** or **serial number**).
  - 2. **Name and address of the manufacturer** and, where applicable, its **authorised representative**.
  - 3. This declaration of incorporation is **issued under the sole responsibility of the manufacturer**.
  - 4. **Object of the declaration** (identification of partly completed machinery allowing traceability; where necessary for the identification of the partly completed machinery, a colour image of sufficient clarity may be included)

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Annex V B - EU declaration of incorporation of partly completed machinery

- The declaration of incorporation shall contain the following particulars:
  - 5. A sentence **declaring which essential health and safety requirements** set out in Annex III of Regulation (EU) 2023/1230 of the European Parliament and of the Council (3) **are applied and fulfilled** and that the **relevant technical documentation was drawn-up** in accordance with Annex IV, Part B, and, where appropriate, a sentence declaring the conformity of the partly completed machinery with other relevant Union harmonisation legislation.

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Annex V B - EU declaration of incorporation of partly completed machinery

- The declaration of incorporation shall contain the following particulars:
  - 6. References to the **harmonised standards** referred to in Article 20(1) or common specifications adopted by the Commission in accordance with Article 20(3) that were applied, including the date of the standard or of the common specification, or references to the **other technical specifications**, including their date, in relation to which conformity is declared. In the event of **partial application of harmonised standards o**r common specifications, the EU declaration of incorporation shall **specify the parts which were applied**.

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Annex V B - EU declaration of incorporation of partly completed machinery

- The declaration of incorporation shall contain the following particulars:
  - 7. An undertaking to transmit, in response to a reasoned request by the national authorities, relevant information on the partly completed machinery. This shall include the method of transmission and shall be without prejudice to the intellectual property rights of the manufacturer of the partly completed machinery.
  - 8. **A statement that the partly completed machinery shall not be put into service until the final machinery into which it is to be incorporated has been declared in conformity with this Regulation**.

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Annex V B - EU declaration of incorporation of partly completed machinery

- The declaration of incorporation shall contain the following particulars:
  - 9. Additional information:
    - **Signed for** and **on behalf of** …
    - **Place** and **date of issue**
    - **Name**, **function**
    - **Signature**

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Points of attention for partly completed machinery

- If you buy / or construct a partly completed machinery …
  - It does not have a presumption of conformity with the Machinery Regulation
  - There is still a lot of work to be done before you can put this machine into service (or put it on the market)
    even if it's for your own use!
    - Someone will have to draw up the technical documentation
    - Someone will have to make the complete risk assessment
    - Someone will have to implement the necessary measures to meet all essential health and safety requirements
    - Someone will have to draw up and sign an EU declaration of conformity
    - This is not a task for a prevention advisor / HSE

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Points of attention for partly completed machinery

- What do you need at least from the manufacturer of a partly completed machine?
  - An EU declaration of incorporation according to Annex V.B. indicating the essential health and safety requirements already fulfilled
  - Assembly instructions
  - Other relevant technical documents (drawings, wiring diagrams, software code etc.)
- Keep records for at least 10 years

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CE marking on partly completed machinery?

CE marking may **NEVER** be affixed to a partly completed machinery.

It is per definition not fully compliant to all essential health & safety requirements of the Machinery Regulation.

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Importance of the Machinery Regulation

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Importance of the machinery regulation

- Manufacturer must demonstrate that the essential health and safety requirements have been met
  - Technical documentation
  - EU Declaration of Conformity
  - CE marking
- Harmonised legislation in the European Union (identical in all EU member states)
- Equal level of safety across all EU member states
- All manufacturers must have at least the same safety level
- Not only higher safety for employers and employees, but also for consumers

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Importance of the machinery regulation

- When purchasing and commissioning of machinery
  - CE marking ➔ Presumption of conformity
  - EU declaration of conformity ➔ Presumption of conformity
  - No further examination of the machine required? But ...

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Limits of the machinery regulation

- However:
  - Regulation concerns the ‘free market of goods’
  - When commissioning:
    - do not forget the environmental factors
    - do not forget the nature of the use & the manufacturer’s instructions for use
  - Unreliable manufacturers; machines with an EU declaration are often non-compliant
  - EU Declaration / CE marking not always correct
    - EU declaration sometimes refers to a different machine
    - EU declaration sometimes cites the wrong directives, etc.
  - Conformity monitoring by the FOD Economics

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Who is the Manufacturer in case of a self-constructed machine?

What does this mean?

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Conclusion

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Conclusion

- The manufacturer must guarantee that machinery **complies with the essential health and safety requirements** set out in Annex III in order to protect users from the many hazards of the machine.

- To obtain this, the manufacturer must apply the following:
  - Provide an **inherently safe design**
  - Make use of **adequate safety** techniques
  - Install **appropriate guards** and **safety devices**
  - Respect **safety distances**
  - Install correct **controls**
  - **Warn users** of any residual risks and provide **instruction for use**

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Conclusion

- The validation / assessment of conformity must have sufficient credibility: **motivation and documentation** are required.
- The manufacturer must record all steps carried out, risk assessment, testing, inspection reports, etc. in a Technical Documentation. He must be able to submit the Technical Documentation to the national authorities. Keep this documentation for at least 10 years from the date of manufacture of the machine (or the last of a series-produced machine).
- Only then can the **EU declaration of conformity** be drawn up.
- Finally, the manufacturer affixes the **CE marking** to the machine.

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